

1 ENGROSSED SENATE AMENDMENT
TO

2 ENGROSSED HOUSE
3 BILL NO. 3443

By: Wilk and Miller of the
House

4 and

5 Frix of the Senate

6
7 An Act relating to transportation; authorizing the
8 modification of certain permit fees; requiring use of
9 certain formula for calculation; amending 47 O.S.
10 2021, Section 14-103, as amended by Section 3,
11 Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025, Section
12 14-103), which relates to width, height, and length
13 of vehicle and load; modifying certain fee; ***
14 amending 69 O.S. 2021, Section 1521, as amended by
15 Section 1, Chapter 460, O.S.L. 2025 (69 O.S. Supp.
16 2025, Section 1521); relating to the Rebuilding
17 Oklahoma Access and Driver Safety Fund; *** providing
18 for codification; and providing an effective date.

19 AMENDMENT NO. 1. Page 1, strike the title, enacting clause and
20 entire bill and insert

21 "An Act relating to transportation; authorizing the
22 modification of certain permit fees; requiring use of
23 certain formula for calculation; requiring deposit of
24 certain amount in certain fund; amending 47 O.S.
2021, Section 14-103, as amended by Section 3,
Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025, Section
14-103), which relates to width, height, and length
of vehicle and load; modifying certain fee; requiring
deposit of certain amount in certain fund; amending
47 O.S. 2021, Section 14-103G, as amended by Section
7, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
Section 14-103G), which relates to oversize or
overweight permits; modifying certain fees; requiring
deposit of certain amount in certain fund; amending
47 O.S. 2021, Section 14-109, as amended by Section

1 8, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
2 Section 14-109), which relates to load limits;
3 modifying certain fees; requiring deposit of certain
4 amount in certain fund; amending 47 O.S. 2021,
5 Section 14-116, as last amended by Section 6, Chapter
6 171, O.S.L. 2025 (47 O.S. Supp. 2025, Section 14-
7 116), which relates to permit fees; modifying certain
8 fees; requiring deposit of certain amount in certain
9 fund; amending 47 O.S. 2021, Section 14-118, as
10 amended by Section 11, Chapter 116, O.S.L. 2022 (47
11 O.S. Supp. 2025, Section 14-118), which relates to
12 motor carriers; modifying certain fees; requiring
13 deposit of certain amount in certain fund; amending
14 47 O.S. 2021, Section 14-120, as amended by Section
15 13, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
16 Section 14-120), which relates to movement of certain
17 manufactured items; modifying certain fees; requiring
18 deposit of certain amount in certain fund; amending
19 47 O.S. 2021, Section 14-121, as amended by Section
20 16, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
21 Section 14-121), which relates to special combination
22 vehicles; modifying certain fees; requiring deposit
23 of certain amount in certain fund; amending 69 O.S.
24 2021, Section 1521, as amended by Section 1, Chapter
460, O.S.L. 2025 (69 O.S. Supp. 2025, Section 1521),
which relates to the Rebuilding Oklahoma Access and
Driver Safety Fund; raising certain apportionment for
certain fiscal years; updating statutory language;
providing for codification; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 14-127 of Title 47, unless there
is created a duplication in numbering, reads as follows:

The Department of Transportation is authorized to increase any
oversize- or overweight-related permit fees found in its
administrative rules including, but not limited to:

- 1 1. Special Over-height Trailer Permit for Limited Travel
- 2 thirty-day (30-day) permit;
- 3 2. Longer Combination Vehicle Annual Permit; and
- 4 3. Special Over-height Trailer Permit for Limited Travel Annual
- 5 Permit.

6 The Department shall use a formula for calculating the changes
7 to the fees using a cost-of-living adjustment through the year 2024.
8 When collecting the fees authorized under the provisions of this
9 section, the Department shall deposit the amount of the difference
10 between the fees as of the effective date of this act and the
11 increased fees authorized by this section to the credit of the
12 Rebuilding Oklahoma Access and Driver Safety Fund.

13 SECTION 2. AMENDATORY 47 O.S. 2021, Section 14-103, as
14 amended by Section 3, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
15 Section 14-103), is amended to read as follows:

16 Section 14-103. A. Except as otherwise provided for by this
17 chapter, no vehicle, with or without load, shall have a total
18 outside width in excess of one hundred two (102) inches excluding:

- 19 1. Tire bulge;
- 20 2. Approved safety devices;
- 21 3. A retracted awning with a width of eight (8) inches or less
- 22 or other appurtenance of four (4) inches or less which is attached
- 23 to the side of a recreational vehicle, as defined in Section 1102 of
- 24 this title; and

1 4. Pins used as a safety precaution or as a load-assisting
2 device if the pins do not extend the overall width of the vehicle
3 beyond nine (9) feet. The State of Oklahoma hereby declares it has
4 determined, in accordance with 23 C.F.R., Section 658.15, that such
5 pins are necessary for the safe and efficient operation of motor
6 vehicles.

7 The provisions of this subsection shall not apply to any person
8 engaged in the hauling of round baled hay with a total outside width
9 of eleven (11) feet or less when the hay is owned by such person and
10 is being hauled for any purpose other than resale. The provisions
11 of this subsection shall also not apply to any county official or
12 employee engaged in the hauling or pulling of a trailer or equipment
13 owned by the county on the county roads of such county.

14 B. Except as otherwise provided for by this chapter:

15 1. No vehicle, with or without load, shall exceed a height of
16 thirteen and one-half (13 1/2) feet on any county road, or fourteen
17 (14) feet on any turnpike, interstate, U.S. or state highway, unless
18 a greater height is authorized by a special permit issued by the
19 Executive Director of the Department of Transportation or an
20 authorized representative of the Department of Transportation
21 specifying the highways to be used, consistent with public
22 convenience and safety. The prohibitions on movement as prescribed
23 in subsection F of Section 14-101 of this title and paragraph 1 of
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subsection G of Section 14-101 of this title shall not apply to vehicles operated pursuant to such permits;

2. An official state bridge vertical clearance map providing clearance heights as posted for bridges on the interstate, U.S. and state highway systems shall be available on the Oklahoma Department of Transportation website; and

3. Operators and owners of vehicles which exceed or have loads which exceed thirteen and one-half (13 1/2) feet shall be held liable for all damages to any part of structures spanning the highway or damages suffered by other affected parties caused by the vehicle or load exceeding the posted height.

C. Except as otherwise provided for by this chapter:

1. No single truck, with or without load, shall have an overall length, inclusive of front and rear bumpers, in excess of forty-five (45) feet;

2. No single bus, with or without load, shall have an overall length, inclusive of front and rear bumpers, in excess of forty-five (45) feet;

3. a. On the National Network of Highways which includes the National System of Interstate and Defense Highways and four-lane divided Federal Aid Primary System Highways, no semitrailer operating in a truck-tractor/semitrailer combination shall have a length greater than fifty-three (53) feet, except as provided

1 in subsection C of Section 14-118 of this title which
2 shall apply to semitrailers exceeding fifty-three (53)
3 feet but not exceeding fifty-nine (59) feet six (6)
4 inches. On the National System of Interstate and
5 Defense Highways and four-lane divided Federal Aid
6 Primary System Highways, no semitrailer or trailer
7 operating in a truck-tractor/semitrailer and trailer
8 combination shall have a length greater than fifty-
9 three (53) feet;

10 b. On roads and highways not a part of the National
11 System of Interstate and Defense Highways or four-lane
12 divided Federal Aid Primary System Highways, no
13 semitrailer operating in a truck-tractor/semitrailer
14 combination shall have a length greater than fifty-
15 three (53) feet and no semitrailer or trailer
16 operating in a truck-tractor/semitrailer and trailer
17 combination shall have a length greater than twenty-
18 nine (29) feet. Except as provided for in subsection
19 D of Section 14-118 of this title, no other
20 combination of vehicles shall have an overall length,
21 inclusive of front and rear bumpers, in excess of
22 seventy (70) feet on all roads and highways. For the
23 purposes of this paragraph, oil field rig-up trucks
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1 shall be considered to be truck-tractors, when towing
2 a trailer or semitrailer;

3 c. On the National Network of Highways the overall length
4 limitation of a towaway trailer transporter
5 combination may exceed length restrictions up to
6 eighty-two (82) feet; and

7 d. As used in this section:

8 (1) ~~The~~ the term "trailer transporter towing unit"
9 shall mean a power unit that is not used to carry
10 property when operating in a towaway trailer
11 transporter combination, and

12 (2) ~~The~~ the term "towaway trailer transporter
13 combination" shall mean a combination of vehicles
14 consisting of a trailer transporter towing unit
15 and two (2) trailers or semitrailers with a total
16 weight that does not exceed twenty-six thousand
17 (26,000) pounds; and in which the trailers or
18 semitrailers carry no property and constitute
19 inventory property of a manufacturer, distributor
20 or dealer of such trailers or semitrailers;

21 4. No combination of vehicles shall consist of more than two
22 units, except:
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- 1 a. one truck and semitrailer or truck-tractor/semitrailer
2 combination may tow one complete trailer or
3 semitrailer, or
- 4 b. vans, suburbans, blazers or other similar types of
5 vehicles and self-propelled recreational vehicles with
6 a three-quarter (3/4) ton or more rated capacity may
7 tow a semitrailer and one complete trailer or
8 semitrailer for recreational purposes only, provided
9 the overall length, inclusive of the front and rear
10 bumpers, does not exceed sixty-five (65) feet;

11 5. Poles and gas lines used to maintain public utility
12 services, not to include new construction, may be moved during
13 daylight hours, and during nighttime hours only in an emergency,
14 subject to traffic and road restrictions promulgated by the
15 Executive Director of the Department of Transportation, when the
16 overall length does not exceed eighty (80) feet. When this length
17 is exceeded, these loads are subject to the requirements of Section
18 14-118 of this title;

19 6. For the purposes of paragraphs 1, 3, and 4 of this
20 subsection, the length of unitized equipment, which is defined to be
21 equipment so constructed and attached to a rubber-tired vehicle that
22 the vehicle and load become a unit and are for all practical
23 purposes inseparable, shall be the length of the vehicle itself, and
24 shall not include any protrusion of the equipment load so

1 constructed or attached. The equipment shall not protrude for a
2 distance greater than two-thirds (2/3) of the wheel base of the
3 vehicle, shall not impair the driver's vision, and if less than
4 seven (7) feet above the roadway, shall be safely marked, flagged or
5 illuminated. Any such protruding structure shall be securely held
6 in place to prevent dropping or swaying. Unitized equipment shall
7 carry such safety equipment as shall be determined to be necessary
8 for the safety, health, and welfare of the driving public by the
9 Executive Director of the Department of Transportation;

10 7. For the purposes of paragraphs 1, 3, and 4 of this
11 subsection, a truck-tractor, when being towed by another vehicle
12 with the wheels of its steering axle raised off the roadway, shall
13 be considered to be a semitrailer as defined in Section 1-162 of
14 this title;

15 8. The provisions of paragraphs 1 and 3 of this subsection
16 shall not apply to any contractor or subcontractor, or agents or
17 employees of any contractor or subcontractor, while engaged in
18 transporting material to the site of a project being constructed by,
19 for, or on behalf of this state or any city, town, county, or
20 subdivision of this state; and

21 9. Special mobilized machinery, as defined in Section 1102 of
22 this title, which exceeds the size provisions of this section shall
23 only use the highways of this state by special permit issued by the
24 Executive Director of the Department of Transportation or an

1 authorized representative of the Executive Director of the
2 Department of Transportation. Such special permit shall be:

3 a. a single-trip permit issued under the provisions of
4 Section 14-116 of this title, or

5 b. a special annual oversize permit issued for one (1)
6 calendar year period upon payment of a fee of ~~Ten~~
7 ~~Dollars (\$10.00)~~ Fifteen Dollars (\$15.00) plus any
8 amount as provided by subsection H of Section 14-118
9 of this title. The Department shall deposit Five
10 Dollars (\$5.00) of each such fee collected to the
11 credit of the Rebuilding Oklahoma Access and Driver
12 Safety Fund.

13 SECTION 3. AMENDATORY 47 O.S. 2021, Section 14-103G, as
14 amended by Section 7, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
15 Section 14-103G), is amended to read as follows:

16 Section 14-103G. A. 1. The Department of Transportation may
17 issue an annual vehicle permit under the provisions of this
18 subsection to a specific vehicle, for the movement of oversize or
19 overweight loads that cannot reasonably be dismantled. Unless
20 otherwise provided by law, permits issued under this subsection
21 shall be subject to the conditions described in paragraphs 2 through
22 8 of this subsection.

23 2. Oversize or overweight loads operating under an annual
24 vehicle permit shall not exceed:

- a. twelve (12) feet in width,
- b. fourteen (14) feet in height,
- c. one hundred ten (110) feet in length, or
- d. one hundred twenty thousand (120,000) pounds gross weight.

3. Oversize or overweight loads operating under an annual vehicle permit under this subsection shall not transport a load that has more than a twenty-five-foot front overhang, or more than a thirty-foot rear overhang.

4. The fee for an annual vehicle permit shall be ~~Four Thousand Dollars (\$4,000.00)~~ Five Thousand Four Hundred Forty Dollars (\$5,440.00) and shall be nonrefundable. The Department shall deposit One Thousand Four Hundred Forty Dollars (\$1,440.00) of each such fee collected to the credit of the Rebuilding Oklahoma Access and Driver Safety Fund.

5. The annual vehicle permit shall be issued for one (1) calendar year period and shall commence upon the date specified on the permit.

6. An annual vehicle permit issued pursuant to this subsection shall be nontransferable between permittees.

7. The permitted vehicle or vehicle combination shall be registered in accordance with the provisions of Chapter 14 of this title for maximum weight.

1 8. An annual vehicle permit issued pursuant to this subsection
2 may be transferred from one vehicle to another vehicle in the fleet
3 of the permittee provided:

4 a. the permitted vehicle is destroyed or otherwise
5 becomes permanently inoperable to the extent that the
6 vehicle will no longer be utilized, and the permittee
7 presents proof to the Department of Transportation
8 that the negotiable certificate of title or other
9 qualifying documentation has been surrendered to the
10 Department of Transportation, or

11 b. the certificate of title to the permitted vehicle is
12 transferred to someone other than the permittee, and
13 the permittee presents proof to the Department of
14 Transportation that the negotiable certificate of
15 title or other qualifying documentation has been
16 transferred from the permittee.

17 9. A permit issued for loads specific to turbine blades, used
18 for the purpose of wind generation, may exceed a length of one
19 hundred ten (110) feet.

20 B. 1. The Department of Transportation may issue an annual
21 vehicle permit under this subsection to a specific motor carrier,
22 for the movement of oversize or overweight loads that cannot
23 reasonably be dismantled. An annual vehicle permit issued under
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1 this subsection may be transferred from one vehicle to another
2 vehicle in the fleet of the permittee provided:

- 3 a. that no more than one vehicle is operating at a time,
4 and
- 5 b. the original certified permit is carried in the
6 vehicle that is being operated under the terms of the
7 permit.

8 2. An annual vehicle permit issued under this subsection shall
9 be sent to the permittee via first-class, registered mail, or at the
10 request and expense of the permittee via overnight delivery service.
11 The annual vehicle permit shall not be duplicated. The annual
12 vehicle permit shall be replaced only if:

- 13 a. the permittee did not receive the original permit
14 within seven (7) business days after the date of
15 issuance,
- 16 b. a request for replacement is submitted to the
17 Department of Transportation within ten (10) business
18 days after the original date of issuance of the
19 permit, and
- 20 c. the request for replacement is accompanied by a
21 notarized statement signed by a principal or officer
22 of the permittee acknowledging that the permittee
23 understands the permit may not be duplicated and that
24 if the original permit is located, the permittee shall

1 return either the original or replacement permit to
2 the Department of Transportation.

3 3. A request for replacement of an annual vehicle permit issued
4 pursuant to the provisions of this subsection shall be denied if the
5 Department of Transportation can verify that the permittee received
6 the original annual vehicle permit.

7 4. Lost, misplaced, damaged, destroyed or otherwise unusable
8 annual vehicle permits shall not be replaced. A new permit shall be
9 required and shall be issued by the Department of Transportation.

10 C. 1. The Department of Transportation may issue an annual
11 fleet permit under this subsection to an electric utility, regulated
12 by the Corporation Commission or a rural electric cooperative solely
13 for the movement of poles. An annual fleet permit issued under this
14 subsection may be used by any vehicle in the fleet of the permittee
15 provided that a certified copy of the permit is carried in each
16 vehicle that is being operated under the terms of the permit.

17 2. Oversize loads operating under an annual permit issued
18 pursuant to this subsection shall not exceed:

- 19 a. twelve (12) feet in width,
- 20 b. fourteen (14) feet in height, or
- 21 c. fifty-five (55) feet in length.

22 3. The annual fee for an annual fleet permit issued pursuant to
23 this subsection shall be ~~Four Thousand Dollars (\$4,000.00)~~ Five
24 Thousand Two Hundred Seventy Dollars (\$5,270.00) and shall be

1 nonrefundable. The Department shall deposit One Thousand Two
2 Hundred Seventy Dollars (\$1,270.00) of each such fee collected to
3 the credit of the Rebuilding Oklahoma Access and Driver Safety Fund.

4 4. The annual fleet permit shall be issued for a one-calendar-
5 year period and shall commence upon the date specified on the
6 permit.

7 5. The annual fleet permit issued under this subsection shall
8 be sent to the permittee via first class, registered mail, or at the
9 request and expense of the permittee via overnight delivery service.
10 The annual permit shall be replaced only if:

11 a. the permittee did not receive the original permit
12 within seven (7) business days after the date of the
13 issuance,

14 b. a request for replacement is submitted to the
15 Department of Transportation within ten (10) business
16 days after the original date of issuance of the
17 permit, and

18 c. the request for replacement is accompanied by a
19 notarized statement signed by an authorized person of
20 the permittee acknowledging that if the original
21 permit is located, the permittee shall either return
22 the original or replacement permit to the Department
23 of Transportation.
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1 6. A request for replacement of an annual permit issued under
2 the provisions of this subsection shall be denied if the Department
3 of Transportation can verify the permittee received the original
4 annual permit.

5 7. Lost, misplaced, damaged, destroyed or otherwise unusable
6 annual permits shall not be replaced. A new permit shall be
7 required and shall be issued by the Department of Transportation.

8 8. For the purposes of paragraph 5 of subsection C of Section
9 14-103 of this title, the term "emergency" means any permitted
10 movement of poles pursuant to the provisions of this subsection that
11 is not for new construction of electric distribution facilities.

12 D. 1. The Department of Transportation shall issue an annual
13 vehicle permit under this subsection to a transportation company or
14 manufacturer of portable buildings solely for the movement of
15 oversize portable buildings for a specific manufacturer of portable
16 buildings. An annual vehicle permit issued under this subsection
17 may not be transferred from one vehicle to another vehicle in the
18 fleet. The name of the manufacturer shall be on the permit and on
19 any portable building being moved. The original certified permit
20 shall be carried in the vehicle that is being operated under the
21 terms of the permit.

22 2. Oversize loads operating under an annual vehicle permit
23 issued pursuant to this subsection shall not exceed:
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- a. twelve (12) feet in width at the wall with no more than a three-inch-eave overhang, or
- b. fourteen (14) feet in height.

3. The total gross weight of oversize loads operating under an annual vehicle permit issued pursuant to this subsection shall not exceed forty-five thousand (45,000) pounds.

4. The tow vehicle shall be limited to two axles, and the vehicle identification number of the vehicle shall be on the permit.

5. The fee for an annual vehicle permit issued pursuant to this subsection shall be ~~Five Hundred Dollars (\$500.00)~~ Six Hundred Sixty Dollars (\$660.00) and shall be nonrefundable. The Department shall deposit One Hundred Sixty Dollars (\$160.00) of each such fee collected to the credit of the Rebuilding Oklahoma Access and Driver Safety Fund.

6. An annual vehicle permit issued under this subsection shall be sent to the permittee via first-class, registered mail, or at the request and expense of the permittee via overnight delivery service. The annual vehicle permit shall not be duplicated. The annual vehicle permit shall be replaced only if:

- a. the permittee did not receive the original permit within seven (7) business days after the date of issuance,
- b. a request for replacement is submitted to the Department of Transportation within ten (10) business

1 days after the original date of issuance of the
2 permit, and

3 c. the request for replacement is accompanied by a
4 notarized statement signed by a principal or officer
5 of the permittee acknowledging that the permittee
6 understands the permit may not be duplicated and that
7 if the original permit is located, the permittee shall
8 return either the original or replacement permit to
9 the Department of Transportation.

10 7. A request for replacement of an annual vehicle permit issued
11 pursuant to the provisions of this subsection shall be denied if the
12 Department of Transportation can verify that the permittee received
13 the original annual vehicle permit.

14 8. A lost, misplaced, damaged, destroyed, or otherwise unusable
15 annual vehicle permit shall be replaced for a fee of ~~Twenty-five~~
16 ~~Dollars (\$25.00)~~ Thirty-five Dollars (\$35.00). The Department shall
17 deposit Ten Dollars (\$10.00) of each such fee collected to the
18 credit of the Rebuilding Oklahoma Access and Driver Safety Fund.

19 SECTION 4. AMENDATORY 47 O.S. 2021, Section 14-109, as
20 amended by Section 8, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
21 Section 14-109), is amended to read as follows:

22 Section 14-109. A. On any road or highway:

23 1. No single axle weight shall exceed twenty thousand (20,000)
24 pounds; and

1 2. The total gross weight in pounds imposed thereon by a
2 vehicle or combination of vehicles shall not exceed the value
3 calculated in accordance with the Federal Bridge formula imposed by
4 23 U.S.C., Section 127.

5 B. Except as to gross limits, the formula of this section shall
6 not apply to a truck-tractor and dump semitrailer when used as a
7 combination unit. In no event shall the maximum load in pounds
8 carried by any set of tandem axles exceed thirty-four thousand
9 (34,000) pounds. Any vehicle operating with split tandem axles or
10 tri-axles shall adhere to the formula.

11 C. Except for loads moving under special permits as provided in
12 this title, no department or agency of this state or any county,
13 city, or public entity thereof shall pay for any material that
14 exceeds the legal weight limits moving in interstate or intrastate
15 commerce in excess of the legal load limits of this state.

16 D. 1. An annual special overload permit may be purchased for
17 vehicles transporting roll-off recycle metals, rock, sand, gravel,
18 cementitious materials, coal, flour, timber, pulpwood, and chips in
19 their natural state, oil field fluids, oil field equipment or
20 equipment used in oil and gas well drilling or exploration, and
21 vehicles transporting grain, fertilizer, cottonseed, cotton,
22 livestock, peanuts, canola, sunflowers, soybeans, feed, any other
23 raw agricultural products, and any other unprocessed agricultural
24 products, if the following conditions are met:

- a. the vehicles are registered for the maximum allowable rate,
- b. the vehicles do not exceed five percent (5%) of the gross limits set forth in subsection A of this section,
- c. the vehicles do not exceed eight percent (8%) of the axle limits set forth in subsection A of this section,
- d. no component of the vehicles exceeds the manufacturer's component weight rating as shown on the vehicle certification label or tag, and
- e. the vehicles operating pursuant to the provisions of this paragraph will not be allowed to operate on the National System of Interstate and Defense Highways.

2. Vehicles operating pursuant to this section must register for the maximum allowable rate and additionally shall purchase a nontransferable annual special overload permit from the Department of Transportation for a fee of ~~Three Hundred Fifty Dollars (\$350.00)~~ Four Hundred Sixty Dollars (\$460.00). ~~All monies Three Hundred Fifty Dollars (\$350.00)~~ of each such fee collected shall be deposited to the credit of the Highway Construction and Maintenance Fund. One Hundred Ten Dollars (\$110.00) of each such fee collected shall be deposited to the credit of the Rebuilding Oklahoma Access and Driver Safety Fund.

1 E. 1. Oversize or overweight vehicles used for specialized
2 transportation if the maximum weight does not exceed twenty-three
3 thousand (23,000) pounds on any single axle and:

4 a. is a dual lane trailer with dual lane axles and the
5 width of the transport vehicle or trailer exceeds
6 twelve (12) feet in width, or

7 b. the overall gross vehicle weight of a single trailer
8 meets or exceeds three hundred thousand (300,000)
9 pounds, originates or terminates at the Tulsa Port of
10 Catoosa, and the trip is confined within a thirty-mile
11 radius of the Port.

12 2. Permit fees for oversize or overweight vehicles used for
13 specialized transportation shall be in accordance with subsection A
14 of Section 14-116 of this title.

15 3. Vehicles operating pursuant to the provisions of this
16 paragraph will not be allowed to operate on the National System of
17 Interstate and Defense Highways.

18 F. Exceptions to this section will be:

19 1. Utility or refuse collection vehicles used by counties,
20 cities, or towns or by private companies contracted by counties,
21 cities, or towns if the following conditions are met:

22 a. calculation of weight for a utility or refuse
23 collection vehicle shall be "Gross Vehicle Weight".
24 The "Gross Vehicle Weight" of a utility or refuse

1 collection vehicle may not exceed the otherwise
2 applicable weight by more than fifteen percent (15%).
3 The weight on individual axles must not exceed the
4 manufacturer's component rating which includes axle,
5 suspension, wheels, rims, brakes, and tires as shown
6 on the vehicle certification label or tag, and

7 b. utility or refuse collection vehicles operated under
8 these exceptions will not be allowed to operate on
9 interstate highways;

10 2. A combination of a wrecker or tow vehicle and another
11 vehicle or vehicle combination if:

12 a. the service provided by the wrecker or tow vehicle is
13 needed to remove disabled, abandoned, or accident-
14 damaged vehicles, and

15 b. the wrecker or tow vehicle is towing the other vehicle
16 or vehicle combination directly to the nearest
17 appropriate place of repair, terminal, or vehicle
18 storage facility;

19 3. A vehicle operating pursuant to the provisions of paragraph
20 2 of this subsection shall not be allowed to operate on the National
21 System of Interstate and Defense Highways unless it is a covered
22 heavy-duty tow and recovery vehicle that:
23
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- a. is transporting a disabled vehicle from the place where the vehicle became disabled to the nearest appropriate repair facility, and
- b. has a gross vehicle weight that is equal to or exceeds the gross vehicle weight of the disabled vehicle being transported; and

4. On the interstate highway system a vehicle designed to be used under emergency conditions to transport personnel and equipment and to support the suppression of fires and mitigation of other hazardous situations with a vehicle weight limit up to a maximum gross vehicle weight of eighty-six thousand (86,000) pounds with less than:

- a. twenty-four thousand (24,000) pounds on a single steering axle,
- b. thirty-three thousand five hundred (33,500) pounds on a single drive axle,
- c. sixty-two thousand (62,000) pounds on a tandem axle, or
- d. fifty-two thousand (52,000) pounds on a tandem rear drive steer axle.

G. 1. Any vehicle utilizing an auxiliary power or idle reduction technology unit in order to promote reduction of fuel use and emissions because of engine idling shall be allowed an

1 additional four hundred (400) pounds total to the total gross weight
2 limits set by this section.

3 2. To be eligible for the exception provided in this
4 subsection, the operator of the vehicle must obtain written proof or
5 certification of the weight of the auxiliary power or idle reduction
6 technology unit and be able to demonstrate or certify that the idle
7 reduction technology is fully functional.

8 3. Written proof or certification of the weight of the
9 auxiliary power or idle reduction technology unit must be available
10 to law enforcement officers if the vehicle is found in violation of
11 applicable weight laws. The additional weight allowed cannot exceed
12 four hundred (400) pounds or the actual proven or certified weight
13 of the unit, whichever is less.

14 H. On the Interstate Highway System, a vehicle carrying fluid
15 milk products shall be considered a load that cannot be easily
16 dismantled or divided, or "nondivisible".

17 I. Utility, refuse collection vehicles or a combination of a
18 wrecker or tow vehicle as described in paragraphs 1 and 2 of
19 subsection F of this section operating under exceptions shall
20 purchase an annual special overload permit from the Department of
21 Transportation for ~~One Hundred Dollars (\$100.00)~~ One Hundred Thirty
22 Dollars (\$130.00). ~~All monies~~ One Hundred Dollars (\$100.00) of each
23 such fee collected shall be deposited to the credit of the Highway
24 Construction and Maintenance Fund. Thirty Dollars (\$30.00) of each

1 such fee collected shall be deposited to the credit of the
2 Rebuilding Oklahoma Access and Driver Safety Fund.

3 SECTION 5. AMENDATORY 47 O.S. 2021, Section 14-116, as
4 last amended by Section 6, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
5 2025, Section 14-116), is amended to read as follows:

6 Section 14-116. A. The Executive Director of the Department of
7 Transportation shall charge a minimum permit fee of ~~Forty Dollars~~
8 ~~(\$40.00)~~ Fifty-five Dollars (\$55.00) for any permit issued pursuant
9 to the provisions of Section 14-101 et seq. of this title. The
10 Department shall deposit Fifteen Dollars (\$15.00) of each such fee
11 collected to the credit of the Rebuilding Oklahoma Access and Driver
12 Safety Fund. In addition to the permit fee, the Executive Director
13 of the Department of Transportation shall charge a fee of ~~Ten~~
14 ~~Dollars (\$10.00)~~ Fifteen Dollars (\$15.00) for each thousand pounds
15 in excess of the legal load limit. The Department shall deposit
16 Five Dollars (\$5.00) of each such fee collected to the credit of the
17 Rebuilding Oklahoma Access and Driver Safety Fund. The Executive
18 Director of the Department of Transportation shall establish any
19 necessary rules for collecting the fees.

20 B. The Department of Transportation is authorized to establish
21 an escrow account system for the payment of permit fees. Authorized
22 motor carriers meeting established credit requirements may
23 participate in the escrow account system for permits purchased from
24 all size and weight permit offices in this state. Carriers not

1 choosing to participate in the escrow account system shall be
2 required to make payment of the required fee or fees upon purchase
3 of each permit as required by law. All monies collected through the
4 escrow account system shall be deposited to a special account of the
5 Department of Transportation and placed in the custody of the State
6 Treasurer. Proceeds from permits purchased using the escrow account
7 system shall be distributed as provided for in subsection H of this
8 section. However, fees collected through such accounts for the
9 electronic transmission, transfer or delivery of permits, as
10 provided for in Section 14-118 of this title, shall be credited to
11 the Weigh Station Improvement Revolving Fund established pursuant to
12 Section 1167 of this title.

13 C. 1. Application for permits shall be made a reasonable time
14 in advance of the expected time of movement of such vehicles. For
15 emergencies affecting the health or safety of persons or a
16 community, permits may be issued for immediate movement.

17 2. Size and weight permit offices in all districts where
18 applicable shall issue permits to authorize carriers by telephone
19 during weekdays.

20 D. No overweight permit shall be valid until all license taxes
21 due the State of Oklahoma have been paid.

22 E. No permit violation shall be deemed to have occurred when an
23 oversize or overweight movement is made pursuant to a permit whose
24 stated weight or size exceeds the actual load.

1 F. Any permit issued for a truck or truck-tractor operating in
2 combination with a trailer or a semitrailer shall contain only the
3 license plate number for the truck or truck-tractor if the permittee
4 provides to the Department of Transportation a list containing the
5 license plate number, and such other information as the Department
6 of Transportation may prescribe by rule, for each trailer or
7 semitrailer which may be used for movement with the permit. When
8 the permittee provides the list described in this subsection, the
9 license plate number for any trailer or semitrailer to be moved with
10 the permit shall not be included on the permit; provided, a trailer
11 or semitrailer which is not on the list shall not be authorized to
12 be used for movement with the permit. It shall be the
13 responsibility of the permittee to ensure the list provided to the
14 Department of Transportation is maintained and updated with any
15 fleet changes. The Department of Transportation shall adopt any
16 rules deemed necessary to administer the provisions of this
17 subsection.

18 G. The first deliverer of motor vehicles designated truck
19 carriers or well service carriers manufactured in Oklahoma shall not
20 be required to purchase an overweight permit when being delivered to
21 the first purchaser.

22 H. Except as provided in Section 14-122 of this title and
23 subsection A of this section, the first One Million Two Hundred
24 Sixteen Thousand Dollars (\$1,216,000.00) of proceeds from both the

1 permit fees and the overweight permit fees imposed pursuant to
2 subsection A of this section collected monthly shall be apportioned
3 by Service Oklahoma as provided in Section 1104 of this title. For
4 the fiscal year beginning July 1, 2022, and all subsequent years,
5 the next Two Million Five Hundred Thousand Dollars (\$2,500,000.00)
6 of proceeds from both the permit fees and the overweight permit fees
7 imposed pursuant to subsection A of this section collected monthly
8 shall be remitted to the Department of Public Safety for the purpose
9 of staffing the port of entry weigh stations with Department of
10 Public Safety port of entry officers whose powers and duties shall
11 be specified by the Department of Public Safety through the
12 promulgation of rules. For the fiscal year beginning July 1, 2017,
13 and all subsequent years, all proceeds collected from both the
14 permit fees and the overweight permit fees imposed pursuant to
15 subsection A of this section in excess of Three Million Seven
16 Hundred Sixteen Thousand Dollars (\$3,716,000.00) shall be deposited
17 in the Weigh Station Improvement Revolving Fund as provided in
18 Section 1167 of this title for the purpose set forth in that section
19 and may be used for motor carrier permitting systems and motor
20 carrier safety and enforcement.

21 SECTION 6. AMENDATORY 47 O.S. 2021, Section 14-118, as
22 amended by Section 11, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
23 Section 14-118), is amended to read as follows:

24

1 Section 14-118. A. 1. Pursuant to such rules as may be
2 prescribed by Oklahoma agencies of jurisdiction, Oklahoma motor
3 carriers may engage in any activity in which carriers subject to the
4 jurisdiction of the federal government may be authorized by federal
5 legislation to engage. Provided further, the Transportation
6 Commission shall formulate for the State Trunk Highway System,
7 including the National System of Interstate and Defense Highways,
8 and for all other highways or portions thereof, rules governing the
9 movement of vehicles or loads which exceed the size or weight
10 limitations specified by the provisions of this chapter.

11 2. Such rules shall be the basis for the development of a
12 system by the Executive Director of the Department of Transportation
13 for the issuance of permits for the movement of oversize or
14 overweight vehicles or loads. Such system shall include, but not be
15 limited to, provisions for duration, seasonal factors, hours of the
16 day or days when valid, special requirements as to flags, flagmen
17 and warning or safety devices and other such items as may be
18 consistent with the intent of this section. The permit system shall
19 include provisions for the collection of permit fees as well as for
20 the issuance of the permits by telephone, electronic transfer or
21 such other methods of issuance as may be deemed feasible.

22 3. The Department of Transportation is authorized to charge a
23 fee of ~~Two Dollars (\$2.00)~~ Three Dollars (\$3.00) for each permit
24 requested to be issued by facsimile machine or by any other means of

1 electronic transmission, transfer or delivery. The fee shall be in
2 addition to any other fee or fees assessed for the permit. ~~The Two~~
3 Dollars (\$2.00) of each such fee collected shall be deposited in the
4 State Treasury to the credit of the Department of Transportation and
5 the monies shall be expended by the Department of Transportation
6 solely for the purposes provided for in this chapter. One Dollar
7 (\$1.00) of each such fee collected shall be deposited to the credit
8 of the Rebuilding Oklahoma Access and Driver Safety Fund.

9 4. It is the purpose of this section to permit the movement of
10 necessary overweight and oversize vehicles or loads consistent with
11 the following obligations:

- 12 a. protection of the motoring public from potential
13 traffic hazards,
- 14 b. protection of highway surfaces, structures, and
15 private property, and
- 16 c. provision for normal flow of traffic with a minimum of
17 interference.

18 B. The Transportation Commission shall prepare and publish a
19 map of this state showing by appropriate symbols the various highway
20 structures and bridges in terms of maximum size and weight
21 restrictions. This map shall be titled "Oklahoma Load Limit Map"
22 and shall be revised periodically to maintain a reasonably current
23 status and in no event shall a period of two (2) years lapse between
24 revisions and publication of the printed version of the Oklahoma

1 Load Limit Map. This map shall also be made available by the
2 Department of Transportation on the Internet, and in no event shall
3 a period of six (6) months lapse between revisions of the
4 information provided on the Internet. Provided, further, the
5 Secretary of the Department of Transportation shall prepare and
6 publish a map of this state showing the advantages of this state as
7 a marketing, warehousing and distribution network center for motor
8 transportation sensitive industries.

9 C. The Executive Director of the Department of Transportation,
10 or an authorized representative, shall have the authority, within
11 the limitations formulated under provisions of this chapter, to
12 issue, withhold or revoke special permits for the operation of
13 vehicles or combinations of vehicles or loads which exceed the size
14 or weight limitations of this chapter. Every such permit shall be
15 carried in the vehicle or combination of vehicles to which it refers
16 and shall be open to inspection by any law enforcement officer or
17 authorized agent of any authority granting such permit, and no
18 person shall violate any of the terms or conditions of such special
19 permit.

20 D. It shall be permissible in the transportation of empty
21 trucks on any road or highway to tow by use of saddlemounts, i.e.,
22 mounting the front wheels of one vehicle on the bed of another
23 leaving the rear wheels only of such towed vehicle in contact with
24 the roadway. One vehicle may be fullmounted on the towing or towed

1 vehicles engaged in any driveway or towaway operation. No more
2 than three saddlemounts may be permitted in such combinations. The
3 towed vehicles shall be securely fastened and operated under the
4 applicable safety requirements of the United States Department of
5 Transportation and such combinations shall not exceed an overall
6 length of seventy-five (75) feet. Provided, a driveway saddlemount
7 with fullmount vehicle transporter combination may reach an overall
8 length of ninety-seven (97) feet on the National Network of
9 Highways.

10 E. The Executive Director of the Department of Transportation,
11 upon application of any person engaged in the transportation of
12 forest products in the raw state, which is defined to be tree-length
13 logs moving from the forest directly to the mill, or upon
14 application of any person engaged in the hauling for hire or for
15 resale of round baled hay with a total outside width of eleven (11)
16 feet or less, shall issue an annual permit, upon payment of a fee of
17 ~~Twenty-five Dollars (\$25.00)~~ Thirty-five Dollars (\$35.00) each year,
18 authorizing the operation by such persons of such motor vehicle load
19 lengths and widths upon the highways of this state except on the
20 National System of Interstate and Defense Highways. The Department
21 shall deposit Ten Dollars (\$10.00) of each such fee collected to the
22 credit of the Rebuilding Oklahoma Access and Driver Safety Fund.
23 Provided, however, the restriction on use of the National System of
24 Interstate and Defense Highways shall not be applicable to persons

1 engaged in the hauling of round baled hay with a total outside width
2 of eleven (11) feet or less.

3 F. The Executive Director of the Department of Transportation,
4 upon application of any person engaged in the transportation of
5 overwidth or overheight equipment used in soil conservation work
6 with a total outside width of twelve (12) feet or less, shall issue
7 an annual permit, upon payment of a fee of ~~Twenty-five Dollars~~
8 ~~(\$25.00)~~ Thirty-five Dollars (\$35.00) each year, authorizing the
9 operation by such persons of such motor vehicle load lengths and
10 widths upon the highways of this state except on the National System
11 of Interstate and Defense Highways. The Department shall deposit
12 Ten Dollars (\$10.00) of each such fee collected to the credit of the
13 Rebuilding Oklahoma Access and Driver Safety Fund.

14 G. Farm equipment including, but not limited to, implements of
15 husbandry as defined in Section 1-125 of this title shall be
16 exempted from the requirement for special permits due to size. Such
17 equipment may move on any highway, except those highways which are
18 part of the National System of Interstate and Defense Highways,
19 during the hours of darkness and shall be subject to the
20 requirements as provided in Section 12-215 of this title. In
21 addition to those requirements, tractors pulling machinery over
22 thirteen (13) feet wide must have two amber flashing warning lamps
23 symmetrically mounted, laterally and widely spaced as practicable,
24

1 visible from both front and rear, mounted at least thirty-nine (39)
2 inches high.

3 H. Any rubber-tired road construction vehicle including rubber-
4 tired truck cranes and special mobilized machinery either self-
5 propelled or drawn carrying no load other than component parts
6 safely secured to the machinery and its own weight, but which is
7 overweight by any provisions of this chapter, shall be authorized to
8 move on the highways of this state. Movement of such vehicles shall
9 be authorized on the National System of Interstate and Defense
10 Highways only by special permit secured from the Executive Director
11 of the Department of Transportation or an authorized representative
12 upon determination that the objectives of this section will be
13 served by such a permit and that federal weight restrictions will
14 not be violated. The special permit shall be:

15 1. A single-trip permit issued under the provisions of this
16 section and Section 14-116 of this title; or

17 2. A special annual overweight permit which shall be issued for
18 one calendar year period upon payment of a fee of ~~Sixty Dollars~~
19 ~~(\$60.00)~~ Eighty-five Dollars (\$85.00). The Department shall deposit
20 Twenty-five Dollars (\$25.00) of each such fee collected to the
21 credit of the Rebuilding Oklahoma Access and Driver Safety Fund.

22 The weight of any such vehicle shall not exceed six hundred
23 fifty (650) pounds multiplied by the nominal width of the tire. The
24 vehicle shall be required to carry the safety equipment adjudged

1 necessary for the health and welfare of the driving public. If any
2 oversized vehicle does not come under the other limitations of the
3 present laws, it shall be deemed that the same shall travel only
4 between the hours of sunrise and sunset. The vehicle, being
5 overweight but of legal dimension, shall be allowed continuous
6 travel. The vehicles, except special mobilized machinery, shall be
7 exempt from the laws of this state relating to motor vehicle
8 registration, licensing or other fees or taxes in lieu of ad valorem
9 taxes.

10 I. 1. When such machinery has a width greater than eight and
11 one-half (8 1/2) feet, or a length, exclusive of load, of forty-five
12 (45) feet, or a height in excess of thirteen and one-half (13 1/2)
13 feet, then the permit may restrict movement to a fifty-mile radius
14 from an established operating base, and may designate highways to be
15 traveled, hours of travel and when flagmen may be required to
16 precede or follow the equipment.

17 2. Possession of a permit shall in no way be construed as
18 exempting such equipment from the authority of the Executive
19 Director of the Department of Transportation to restrict use of
20 particular highways, nor shall it exempt owners or operators of such
21 equipment from the responsibility for damage to highways caused by
22 movement of the equipment. Nothing in this subsection shall apply
23 to machinery used in highway construction or road material
24 production.

1 3. Upon the issuance of a special mobilized machinery driveway
2 permit as provided in this subsection, special mobilized machinery
3 manufactured in Oklahoma shall be permitted to move upon the
4 highways of this state from the place of manufacture to the state
5 line for delivery and exclusive use outside the state, and may be
6 temporarily returned to Oklahoma for modification and repair, with
7 subsequent movement back out of the state. Special driveway
8 permits for such movements shall be issued by the Executive Director
9 of the Department of Transportation, who may act through designated
10 agents, upon the payment of a fee in the amount of ~~Fifteen Dollars~~
11 ~~(\$15.00)~~ Twenty Dollars (\$20.00) for each movement. The Department
12 shall deposit Five Dollars (\$5.00) of each such fee collected to the
13 credit of the Rebuilding Oklahoma Access and Driver Safety Fund.

14 4. The size of the special mobilized machinery shall not be
15 such as to create a safety hazard in the judgment of the Executive
16 Director of the Department of Transportation. Permits for such
17 special mobilized machinery shall specify a maximum permissible road
18 speed of sixty (60) miles per hour, designate safety equipment to be
19 carried and may exclude use of highways of the interstate system.

20 5. When such equipment has a width greater than eight and one-
21 half (8 1/2) feet, or a length exclusive of load of forty-five (45)
22 feet, or a height in excess of thirteen and one-half (13 1/2) feet,
23 the permit may designate highways to be traveled, hours of travel
24 and when flagmen may be required to precede or follow the equipment.

1 6. Possession of a special driveaway permit shall in no way be
2 construed as exempting such equipment from the authority of the
3 Executive Director of the Department of Transportation to restrict
4 use of particular highways, nor shall it exempt the owners or
5 operators of such equipment from the responsibility for damage to
6 highways caused by the movement of such equipment.

7 SECTION 7. AMENDATORY 47 O.S. 2021, Section 14-120, as
8 amended by Section 13, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
9 Section 14-120), is amended to read as follows:

10 Section 14-120. A. Manufactured items, with the exception of
11 manufactured homes as defined in Section 1102 of this title and
12 industrialized housing as described in subsection B of Section 14-
13 103A of this title, exceeding sixteen (16) feet but not exceeding
14 twenty-three (23) feet in width traveling:

15 1. From a point of manufacture in this state to a point of
16 delivery in this state or to a point of delivery in another state;
17 or

18 2. From a point of manufacture outside this state to a point of
19 delivery in this state or to a point of delivery in another state
20 shall be permitted, upon receipt of a special movement permit issued
21 under the provisions of subsection B of this section, to travel on
22 any state or U.S. highway in Oklahoma. Provided, however, the
23 Executive Director of the Department of Transportation is authorized
24 to allow such items in excess of twenty-three (23) feet in width to

1 travel on such highway if it is in the best interest of the state
2 and a special moving permit has been issued. Provided, further,
3 that no such load in excess of the limitations set forth in the
4 applicable United States Code shall be permitted to travel upon any
5 portion of the National System of Interstate and Defense Highways.

6 B. 1. Every person desiring to transport manufactured items
7 pursuant to the provisions of this section shall apply to the
8 Department of Transportation for a special movement permit on an
9 application form prescribed by the Department. Upon approval of the
10 application by the Department of Transportation, a special movement
11 permit shall be issued for a fee of ~~Five Hundred Dollars (\$500.00)~~
12 Seven Hundred Fifteen Dollars (\$715.00). The Department shall
13 deposit Two Hundred Fifteen Dollars (\$215.00) of each such fee
14 collected to the credit of the Rebuilding Oklahoma Access and Driver
15 Safety Fund.

16 2. Except as provided in Section 14-122 of this title and in
17 paragraph 1 of this subsection, monies received from such special
18 movement permit fees shall be deposited in the State Treasury to the
19 credit of the General Revenue Fund. A permit issued pursuant to the
20 provisions of this subsection shall expire upon the completion of
21 one trip specified in subsection A of this section. The special
22 movement permit, and fee related thereto, shall be in addition to
23 the permit and fees required by Section 14-116 of this title.

1 C. Highway escorts shall be required for transportation of
2 items pursuant to the provisions of this section according to rules
3 and regulations prescribed by the Department of Transportation.

4 SECTION 8. AMENDATORY 47 O.S. 2021, Section 14-121, as
5 amended by Section 16, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
6 Section 14-121), is amended to read as follows:

7 Section 14-121. A. No person shall operate a special
8 combination vehicle within this state without a special combination
9 vehicle permit for the vehicle issued by the Department of
10 Transportation. Such permit may be issued for operation upon
11 Federal Aid Interstate Highways or four-lane divided Federal Aid
12 Primary Highways and for access or egress between points of origin
13 or destination.

14 B. 1. The Executive Director of the Department of
15 Transportation shall promulgate rules for the issuance of special
16 combination vehicle permits and shall collect an annual fee of ~~Two~~
17 ~~Hundred Forty Dollars (\$240.00)~~ Three Hundred Forty-five Dollars
18 (\$345.00) for each such permit issued. The Department shall deposit
19 One Hundred Five Dollars (\$105.00) of each such fee collected to the
20 credit of the Rebuilding Oklahoma Access and Driver Safety Fund.

21 2. Except as provided in Section 14-122 of this title and in
22 paragraph 1 of this subsection, fees collected pursuant to this
23 section shall be remitted to the State Treasurer to be credited to
24 the General Revenue Fund in the State Treasury.

1 C. For the purposes of this section, a special combination
2 vehicle shall consist of a truck-tractor semitrailer combination
3 towing two complete trailers or semitrailers. No semitrailer or
4 trailer used in such a combination shall have a length greater than
5 twenty-nine (29) feet nor shall a special combination vehicle exceed
6 the weight limitations imposed by Sections 14-109 and 14-116 of this
7 title.

8 SECTION 9. AMENDATORY 69 O.S. 2021, Section 1521, as
9 amended by Section 1, Chapter 460, O.S.L. 2025 (69 O.S. Supp. 2025,
10 Section 1521), is amended to read as follows:

11 Section 1521. A. There is hereby created in the State Treasury
12 a fund to be known as the "Rebuilding Oklahoma Access and Driver
13 Safety Fund". The fund shall be a continuing fund, not subject to
14 fiscal year limitations, and shall consist of all appropriations and
15 transfers made by the Legislature. All monies accruing to the
16 credit of the fund are hereby appropriated and may be budgeted and
17 expended by the Department of Transportation for the purposes
18 authorized by subsection D of this section in amounts as authorized
19 by the Oklahoma Legislature. Expenditures from the fund shall be
20 made upon warrants issued by the State Treasurer against claims
21 filed as prescribed by law with the Director of the Office of
22 Management and Enterprise Services for approval and payment.

23 B. Beginning July 1, 2021, except for an amount equivalent to
24 the amount of revenue apportioned to the Rebuilding Oklahoma Access

1 and Driver Safety Fund pursuant to Section 500.4B of Title 68 and
2 Section 1104 of Title 47 of the Oklahoma Statutes and from other
3 sources apportioned to the Fund by law, there shall be apportioned
4 to the funds specified in this subsection from the monies that would
5 otherwise be apportioned to the General Revenue Fund by Section 2352
6 of Title 68 of the Oklahoma Statutes from the revenues derived
7 pursuant to subsections A, B and E of Section 2355 of Title 68 of
8 the Oklahoma Statutes amounts as follows:

9 1. Subject to any reductions required by subsection C of this
10 section, there shall be apportioned to the Rebuilding Oklahoma
11 Access and Driver Safety Fund:

- 12 a. for the fiscal year beginning July 1, 2021, and for
13 each fiscal year thereafter, Eighty Million Dollars
14 (\$80,000,000.00), which shall be allocated and used by
15 the Department of Transportation first for the purpose
16 of making any required payments for principal,
17 interest or other costs of borrowing with respect to
18 the obligations issued pursuant to Section 341 of
19 Title 73 of the Oklahoma Statutes and after any such
20 required payment has been made then for the purposes
21 otherwise authorized by this section, plus
22 b. the total amount apportioned to the Rebuilding
23 Oklahoma Access and Driver Safety Fund for the
24 preceding fiscal year which, except for the amount

1 prescribed by subparagraph a of this paragraph, shall
2 be apportioned before any other amount is apportioned
3 pursuant to Section 2352 of Title 68 of the Oklahoma
4 Statutes, plus

5 c. an additional amount that is required in order for the
6 total apportionment to the Rebuilding Oklahoma Access
7 and Driver Safety Fund from all sources, except for
8 the amount apportioned pursuant to Section 1 of this
9 act and Sections 14-103, 14-103G, 14-109, 14-116, 14-
10 118, 14-120, and 14-121 of Title 47 of the Oklahoma
11 Statutes, for such fiscal year to equal:

12 (1) Five Hundred Seventy-five Million Dollars
13 (\$575,000,000.00) for the fiscal year beginning
14 July 1, 2021,

15 (2) Five Hundred Ninety Million Dollars
16 (\$590,000,000.00) for the fiscal year beginning
17 July 1, 2022, and

18 (3) Six Hundred Ten Million Dollars (\$610,000,000.00)
19 for the fiscal year beginning July 1, 2025, and
20 for each fiscal year thereafter.

21 All amounts apportioned pursuant to this paragraph shall be
22 divided into twelve equal amounts to be apportioned each month
23 during the fiscal year except the amount specified in subparagraph a
24 of this paragraph which amount shall be allocated in its full amount

1 in cash not later than July 30 each year or such later date as may
2 be required in order for the amount to be allocated in cash; and

3 2. For each fiscal year after the apportionments required by
4 paragraph 1 of this subsection have been made:

5 a. the next Two Million Dollars (\$2,000,000.00) shall be
6 apportioned to the Oklahoma Tourism and Passenger Rail
7 Revolving Fund created pursuant to Section 325 of
8 Title 66 of the Oklahoma Statutes to be used for
9 capital and operating costs for the "Heartland Flyer"
10 rail project, and

11 b. the next Three Million Dollars (\$3,000,000.00) shall
12 be apportioned to the Public Transit Revolving Fund
13 created pursuant to Section 4031 of this title to be
14 used for purposes authorized by law other than the
15 purpose described by subparagraph a of this paragraph.

16 All amounts apportioned pursuant to this paragraph shall be
17 divided into twelve equal amounts to be apportioned each month
18 during the fiscal year.

19 C. In the event that the Director of the Office of Management
20 and Enterprise Services declares a General Revenue Fund revenue
21 failure pursuant to Section 34.49 of Title 62 of the Oklahoma
22 Statutes, and agency allocations are reduced pursuant to the
23 provisions of Section 34.49 of Title 62 of the Oklahoma Statutes,
24

1 the amounts that would otherwise be apportioned to the ROADS Fund
2 by:

3 1. Subparagraph a of paragraph 1 of subsection B of this
4 section, only to the extent that the amount is not required for debt
5 service related to the obligations authorized pursuant to Section
6 341 of Title 73 of the Oklahoma Statutes, Section 350 of Title 73 of
7 the Oklahoma Statutes and Section 1 of Enrolled House Bill No. 2896
8 of the 1st Session of the 58th Oklahoma Legislature;

9 2. Subparagraphs b and c of paragraph 1 of subsection B of this
10 section; and

11 3. Subparagraphs a and b of paragraph 2 of subsection B of this
12 section,
13 shall be reduced by a percentage equal to that required of the
14 General Revenue Fund appropriations to state agencies and such
15 reductions shall occur during the entire fiscal year and for any
16 month during which such reductions are required by the Office of
17 Management and Enterprise Services and by the same percentage as
18 that required of the agencies for such General Revenue Fund
19 appropriations.

20 D. The Department of Transportation shall use the monies in the
21 Rebuilding Oklahoma Access and Driver Safety Fund for:

22 1. The construction and maintenance of state roads, bridges and
23 highways;

1 2. The direct expenses of operating and maintaining the state
2 highway system, including bridges;

3 3. Direct expenses incurred in constructing, repairing, and
4 maintaining state highways, farm-to-market roads, county highways
5 and bridges as authorized by law;

6 4. Matching federal funds;

7 5. The purchase of materials, tools, machinery, motor vehicles,
8 and equipment necessary or convenient for the construction and
9 maintenance of the state highway system and bridges;

10 6. Debt service incurred prior to January 1, 2006, for Capital
11 Improvement Program bonds sold pursuant to Section 2001 of this
12 title;

13 7. Debt service incurred on or after July 1, 2009, with respect
14 to obligations authorized to be issued pursuant to Section 341 of
15 Title 73 of the Oklahoma Statutes, Section 350 of Title 73 of the
16 Oklahoma Statutes and Section 1 of Enrolled House Bill No. 2896 of
17 the 1st Session of the 58th Oklahoma Legislature; and

18 8. For fiscal years beginning on or after July 1, 2025, and
19 ending on or prior to June 30, 2033, Twenty Million Dollars
20 (\$20,000,000.00) per fiscal year for the construction, repair, and
21 maintenance of weigh stations on the state highway system.

22 E. From the monies allocated pursuant to the provisions of
23 subparagraph a of paragraph 1 of subsection B of this section each
24 fiscal year, the Department of Transportation shall make payments

1 required for the payment of principal, interest and other costs
2 related to the obligations issued by the Oklahoma Capitol
3 Improvement Authority as authorized by Section 341 of Title 73 of
4 the Oklahoma Statutes, Section 350 of Title 73 of the Oklahoma
5 Statutes and Section 1 of Enrolled House Bill No. 2896 of the 1st
6 Session of the 58th Oklahoma Legislature, and such payments shall be
7 made by the Department each fiscal year before such monies are used
8 for any other purpose.

9 SECTION 10. This act shall become effective November 1, 2026."

10 Passed the Senate the 5th day of May, 2026.

11
12 _____
13 Presiding Officer of the Senate

14 Passed the House of Representatives the ____ day of _____,
15 2026.

16
17 _____
18 Presiding Officer of the House
19 of Representatives
20
21
22
23
24

1 ENGROSSED HOUSE
2 BILL NO. 3443

By: Wilk and Miller of the
House

3 and

4 Frix of the Senate
5
6
7

8 An Act relating to transportation; authorizing the modification of
9 certain permit fees; requiring use of certain formula for
10 calculation; amending 47 O.S. 2021, Section 14-103, as amended by
11 Section 3, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025, Section 14-
12 103), which relates to width, height, and length of vehicle and
13 load; modifying certain fee; amending 47 O.S. 2021, Section 14-103G,
14 as amended by Section 7, Chapter 116, O.S.L. 2022 (47 O.S. Supp.
15 2025, Section 14-103G), which relates to oversize or overweight
16 permits; modifying certain fees; 47 O.S. 2021, Section 14-109, as
17 amended by Section 8, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
18 Section 14-109), which relates to load limits; modifying certain
19 fees; amending 47 O.S. 2021, Section 14-116, as amended by Section
20 9, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025, Section 14-116),
21 which relates to permit fees; modifying certain fees; amending 47
22 O.S. 2021, Section 14-118, as amended by Section 11, Chapter 116,
23 O.S.L. 2022 (47 O.S. Supp. 2025, Section 14- 118), which relates to
24 motor carriers; modifying certain fees; amending 47 O.S. 2021,
Section 14-120, as amended by Section 13, Chapter 116, O.S.L. 2022
(47 O.S. Supp. 2025, Section 14-120), which relates to movement of
certain manufactured items; modifying certain fees; amending 47 O.S.
2021, Section 14-121, as amended by Section 16, Chapter 116, O.S.L.
2022 (47 O.S. Supp. 2025, Section 14-121), which relates to special
combination vehicles; modifying certain fees; amending 69 O.S. 2021,
Section 1521, as amended by Section 1, Chapter 460, O.S.L. 2025 (69
O.S. Supp. 2025, Section 1521); relating to the Rebuilding Oklahoma
Access and Driver Safety Fund; removing certain restrictions on
funds; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 11. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 14-127 of Title 47, unless there is created a duplication in numbering, reads as follows:

The Oklahoma Department of Transportation is authorized to increase any oversize or overweight related permit fees found in its administrative rules including, but not limited to:

1. Special Overheight Trailer Permit for Limited Travel Thirty-day (30-day) Permit;

2. Longer Combination Annual Permit; and

3. Special Overheight Trailer Permit for Limited Travel Annual Permit. The Department shall use a formula for calculating the changes to the fees using a cost of living adjustment through the year 2024.

SECTION 12. AMENDATORY 47 O.S. 2021, Section 14-103, as amended by Section 3, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025, Section 14-103), is amended to read as follows:

Section 14-103. A. Except as otherwise provided for by this chapter, no vehicle, with or without load, shall have a total outside width in excess of one hundred two (102) inches excluding:

1. Tire bulge;

2. Approved safety devices;

3. A retracted awning with a width of eight (8) inches or less or other appurtenance of four (4) inches or less which is attached

1 to the side of a recreational vehicle, as defined in Section 1102 of
2 this title; and

3 4. Pins used as a safety precaution or as a load-assisting
4 device if the pins do not extend the overall width of the vehicle
5 beyond nine (9) feet. The State of Oklahoma hereby declares it has
6 determined, in accordance with 23 C.F.R., Section 658.15, that such
7 pins are necessary for the safe and efficient operation of motor
8 vehicles.

9 The provisions of this subsection shall not apply to any person
10 engaged in the hauling of round baled hay with a total outside width
11 of eleven (11) feet or less when the hay is owned by such person and
12 is being hauled for any purpose other than resale. The provisions
13 of this subsection shall also not apply to any county official or
14 employee engaged in the hauling or pulling of a trailer or equipment
15 owned by the county on the county roads of such county.

16 B. Except as otherwise provided for by this chapter:

17 1. No vehicle, with or without load, shall exceed a height of
18 thirteen and one-half (13 1/2) feet on any county road, or fourteen
19 (14) feet on any turnpike, interstate, U.S. or state highway, unless
20 a greater height is authorized by a special permit issued by the
21 Executive Director of the Department of Transportation or an
22 authorized representative of the Department of Transportation
23 specifying the highways to be used, consistent with public
24 convenience and safety. The prohibitions on movement as prescribed

1 in subsection F of Section 14-101 of this title and paragraph 1 of
2 subsection G of Section 14-101 of this title shall not apply to
3 vehicles operated pursuant to such permits;

4 2. An official state bridge vertical clearance map providing
5 clearance heights as posted for bridges on the interstate, U.S. and
6 state highway systems shall be available on the Oklahoma Department
7 of Transportation website; and

8 3. Operators and owners of vehicles which exceed or have loads
9 which exceed thirteen and one-half (13 1/2) feet shall be held
10 liable for all damages to any part of structures spanning the
11 highway or damages suffered by other affected parties caused by the
12 vehicle or load exceeding the posted height.

13 C. Except as otherwise provided for by this chapter:

14 1. No single truck, with or without load, shall have an overall
15 length, inclusive of front and rear bumpers, in excess of forty-five
16 (45) feet;

17 2. No single bus, with or without load, shall have an overall
18 length, inclusive of front and rear bumpers, in excess of forty-five
19 (45) feet;

20 3. a. On the National Network of Highways which includes the
21 National System of Interstate and Defense Highways and
22 four-lane divided Federal Aid Primary System Highways,
23 no semitrailer operating in a truck-
24 tractor/semitrailer combination shall have a length

greater than fifty-three (53) feet, except as provided in subsection C of Section 14-118 of this title which shall apply to semitrailers exceeding fifty-three (53) feet but not exceeding fifty-nine (59) feet six (6) inches. On the National System of Interstate and Defense Highways and four-lane divided Federal Aid Primary System Highways, no semitrailer or trailer operating in a truck-tractor/semitrailer and trailer combination shall have a length greater than fifty-three (53) feet;

- b. On roads and highways not a part of the National System of Interstate and Defense Highways or four-lane divided Federal Aid Primary System Highways, no semitrailer operating in a truck-tractor/semitrailer combination shall have a length greater than fifty-three (53) feet and no semitrailer or trailer operating in a truck-tractor/semitrailer and trailer combination shall have a length greater than twenty-nine (29) feet. Except as provided for in subsection D of Section 14-118 of this title, no other combination of vehicles shall have an overall length, inclusive of front and rear bumpers, in excess of seventy (70) feet on all roads and highways. For the purposes of this paragraph, oil field rig-up trucks

1 shall be considered to be truck-tractors, when towing
2 a trailer or semitrailer;

3 c. On the National Network of Highways the overall length
4 limitation of a towaway trailer transporter
5 combination may exceed length restrictions up to
6 eighty-two (82) feet;

7 d. As used in this section:

8 (1) The term "trailer transporter towing unit" shall
9 mean a power unit that is not used to carry
10 property when operating in a towaway trailer
11 transporter combination, and

12 (2) The term "towaway trailer transporter
13 combination" shall mean a combination of vehicles
14 consisting of a trailer transporter towing unit
15 and two (2) trailers or semitrailers with a total
16 weight that does not exceed twenty-six thousand
17 (26,000) pounds; and in which the trailers or
18 semitrailers carry no property and constitute
19 inventory property of a manufacturer, distributor
20 or dealer of such trailers or semitrailers;

21 4. No combination of vehicles shall consist of more than two
22 units, except:
23
24

- 1 a. one truck and semitrailer or truck-tractor/semitrailer
2 combination may tow one complete trailer or
3 semitrailer, or
- 4 b. vans, suburbans, blazers or other similar types of
5 vehicles and self-propelled recreational vehicles with
6 a three-quarter (3/4) ton or more rated capacity may
7 tow a semitrailer and one complete trailer or
8 semitrailer for recreational purposes only, provided
9 the overall length, inclusive of the front and rear
10 bumpers, does not exceed sixty-five (65) feet;

11 5. Poles and gas lines used to maintain public utility
12 services, not to include new construction, may be moved during
13 daylight hours, and during nighttime hours only in an emergency,
14 subject to traffic and road restrictions promulgated by the
15 Executive Director of the Department of Transportation, when the
16 overall length does not exceed eighty (80) feet. When this length
17 is exceeded, these loads are subject to the requirements of Section
18 14-118 of this title;

19 6. For the purposes of paragraphs 1, 3, and 4 of this
20 subsection, the length of unitized equipment, which is defined to be
21 equipment so constructed and attached to a rubber-tired vehicle that
22 the vehicle and load become a unit and are for all practical
23 purposes inseparable, shall be the length of the vehicle itself, and
24 shall not include any protrusion of the equipment load so

1 constructed or attached. The equipment shall not protrude for a
2 distance greater than two-thirds (2/3) of the wheel base of the
3 vehicle, shall not impair the driver's vision, and if less than
4 seven (7) feet above the roadway, shall be safely marked, flagged or
5 illuminated. Any such protruding structure shall be securely held
6 in place to prevent dropping or swaying. Unitized equipment shall
7 carry such safety equipment as shall be determined to be necessary
8 for the safety, health, and welfare of the driving public by the
9 Executive Director of the Department of Transportation;

10 7. For the purposes of paragraphs 1, 3, and 4 of this
11 subsection, a truck-tractor, when being towed by another vehicle
12 with the wheels of its steering axle raised off the roadway, shall
13 be considered to be a semitrailer as defined in Section 1-162 of
14 this title;

15 8. The provisions of paragraphs 1 and 3 of this subsection
16 shall not apply to any contractor or subcontractor, or agents or
17 employees of any contractor or subcontractor, while engaged in
18 transporting material to the site of a project being constructed by,
19 for, or on behalf of this state or any city, town, county, or
20 subdivision of this state; and

21 9. Special mobilized machinery, as defined in Section 1102 of
22 this title, which exceeds the size provisions of this section shall
23 only use the highways of this state by special permit issued by the
24 Executive Director of the Department of Transportation or an

1 authorized representative of the Executive Director of the
2 Department of Transportation. Such special permit shall be:

- 3 a. a single-trip permit issued under the provisions of
4 Section 14-116 of this title, or
- 5 b. a special annual oversize permit issued for one (1)
6 calendar year period upon payment of a fee of ~~Ten~~
7 ~~Dollars (\$10.00)~~ Fifteen Dollars (\$15.00) plus any
8 amount as provided by subsection H of Section 14-118
9 of this title.

10 SECTION 13. AMENDATORY 47 O.S. 2021, Section 14-103G,
11 as amended by Section 7, Chapter 116, O.S.L. 2022 (47 O.S. Supp.
12 2025, Section 14-103G), is amended to read as follows:

13 Section 14-103G. A. 1. The Department of Transportation may
14 issue an annual vehicle permit under the provisions of this
15 subsection to a specific vehicle, for the movement of oversize or
16 overweight loads that cannot reasonably be dismantled. Unless
17 otherwise provided by law, permits issued under this subsection
18 shall be subject to the conditions described in paragraphs 2 through
19 8 of this subsection.

20 2. Oversize or overweight loads operating under an annual
21 vehicle permit shall not exceed:

- 22 a. twelve (12) feet in width,
- 23 b. fourteen (14) feet in height,
- 24 c. one hundred ten (110) feet in length, or

d. one hundred twenty thousand (120,000) pounds gross weight.

3. Oversize or overweight loads operating under an annual vehicle permit under this subsection shall not transport a load that has more than a twenty-five-foot front overhang, or more than a thirty-foot rear overhang.

4. The fee for an annual vehicle permit shall be ~~Four Thousand Dollars (\$4,000.00)~~ Five Thousand Four Hundred Forty Dollars (\$5,440.00) and shall be nonrefundable.

5. The annual vehicle permit shall be issued for one (1) calendar year period and shall commence upon the date specified on the permit.

6. An annual vehicle permit issued pursuant to this subsection shall be nontransferable between permittees.

7. The permitted vehicle or vehicle combination shall be registered in accordance with the provisions of Chapter 14 of this title for maximum weight.

8. An annual vehicle permit issued pursuant to this subsection may be transferred from one vehicle to another vehicle in the fleet of the permittee provided:

a. the permitted vehicle is destroyed or otherwise becomes permanently inoperable to the extent that the vehicle will no longer be utilized, and the permittee presents proof to the Department of Transportation

1 that the negotiable certificate of title or other
2 qualifying documentation has been surrendered to the
3 Department of Transportation, or

4 b. the certificate of title to the permitted vehicle is
5 transferred to someone other than the permittee, and
6 the permittee presents proof to the Department of
7 Transportation that the negotiable certificate of
8 title or other qualifying documentation has been
9 transferred from the permittee.

10 9. A permit issued for loads specific to turbine blades, used
11 for the purpose of wind generation, may exceed a length of one
12 hundred ten (110) feet.

13 B. 1. The Department of Transportation may issue an annual
14 vehicle permit under this subsection to a specific motor carrier,
15 for the movement of oversize or overweight loads that cannot
16 reasonably be dismantled. An annual vehicle permit issued under
17 this subsection may be transferred from one vehicle to another
18 vehicle in the fleet of the permittee provided:

19 a. that no more than one vehicle is operating at a time,
20 and

21 b. the original certified permit is carried in the
22 vehicle that is being operated under the terms of the
23 permit.

1 2. An annual vehicle permit issued under this subsection shall
2 be sent to the permittee via first-class, registered mail, or at the
3 request and expense of the permittee via overnight delivery service.
4 The annual vehicle permit shall not be duplicated. The annual
5 vehicle permit shall be replaced only if:

6 a. the permittee did not receive the original permit
7 within seven (7) business days after the date of
8 issuance,

9 b. a request for replacement is submitted to the
10 Department of Transportation within ten (10) business
11 days after the original date of issuance of the
12 permit, and

13 c. the request for replacement is accompanied by a
14 notarized statement signed by a principal or officer
15 of the permittee acknowledging that the permittee
16 understands the permit may not be duplicated and that
17 if the original permit is located, the permittee shall
18 return either the original or replacement permit to
19 the Department of Transportation.

20 3. A request for replacement of an annual vehicle permit issued
21 pursuant to the provisions of this subsection shall be denied if the
22 Department of Transportation can verify that the permittee received
23 the original annual vehicle permit.

1 4. Lost, misplaced, damaged, destroyed or otherwise unusable
2 annual vehicle permits shall not be replaced. A new permit shall be
3 required and shall be issued by the Department of Transportation.

4 C. 1. The Department of Transportation may issue an annual
5 fleet permit under this subsection to an electric utility, regulated
6 by the Corporation Commission or a rural electric cooperative solely
7 for the movement of poles. An annual fleet permit issued under this
8 subsection may be used by any vehicle in the fleet of the permittee
9 provided that a certified copy of the permit is carried in each
10 vehicle that is being operated under the terms of the permit.

11 2. Oversize loads operating under an annual permit issued
12 pursuant to this subsection shall not exceed:

- 13 a. twelve (12) feet in width,
- 14 b. fourteen (14) feet in height, or
- 15 c. fifty-five (55) feet in length.

16 3. The annual fee for an annual fleet permit issued pursuant to
17 this subsection shall be ~~Four Thousand Dollars (\$4,000.00)~~ Five
18 Thousand Two Hundred Seventy Dollars (\$5,270.00) and shall be
19 nonrefundable.

20 4. The annual fleet permit shall be issued for a one-calendar-
21 year period and shall commence upon the date specified on the
22 permit.

23 5. The annual fleet permit issued under this subsection shall
24 be sent to the permittee via first class, registered mail, or at the

1 request and expense of the permittee via overnight delivery service.

2 The annual permit shall be replaced only if:

3 a. the permittee did not receive the original permit
4 within seven (7) business days after the date of the
5 issuance,

6 b. a request for replacement is submitted to the
7 Department of Transportation within ten (10) business
8 days after the original date of issuance of the
9 permit, and

10 c. the request for replacement is accompanied by a
11 notarized statement signed by an authorized person of
12 the permittee acknowledging that if the original
13 permit is located, the permittee shall either return
14 the original or replacement permit to the Department
15 of Transportation.

16 6. A request for replacement of an annual permit issued under
17 the provisions of this subsection shall be denied if the Department
18 of Transportation can verify the permittee received the original
19 annual permit.

20 7. Lost, misplaced, damaged, destroyed or otherwise unusable
21 annual permits shall not be replaced. A new permit shall be
22 required and shall be issued by the Department of Transportation.

23 8. For the purposes of paragraph 5 of subsection C of Section
24 14-103 of this title, the term "emergency" means any permitted

1 movement of poles pursuant to the provisions of this subsection that
2 is not for new construction of electric distribution facilities.

3 D. 1. The Department of Transportation shall issue an annual
4 vehicle permit under this subsection to a transportation company or
5 manufacturer of portable buildings solely for the movement of
6 oversize portable buildings for a specific manufacturer of portable
7 buildings. An annual vehicle permit issued under this subsection
8 may not be transferred from one vehicle to another vehicle in the
9 fleet. The name of the manufacturer shall be on the permit and on
10 any portable building being moved. The original certified permit
11 shall be carried in the vehicle that is being operated under the
12 terms of the permit.

13 2. Oversize loads operating under an annual vehicle permit
14 issued pursuant to this subsection shall not exceed:

- 15 a. twelve (12) feet in width at the wall with no more
16 than a three-inch-eave overhang, or
17 b. fourteen (14) feet in height.

18 3. The total gross weight of oversize loads operating under an
19 annual vehicle permit issued pursuant to this subsection shall not
20 exceed forty-five thousand (45,000) pounds.

21 4. The tow vehicle shall be limited to two axles, and the
22 vehicle identification number of the vehicle shall be on the permit.
23
24

1 5. The fee for an annual vehicle permit issued pursuant to this
2 subsection shall be ~~Five Hundred Dollars (\$500.00)~~ Six Hundred Sixty
3 Dollars (\$660.00) and shall be nonrefundable.

4 6. An annual vehicle permit issued under this subsection shall
5 be sent to the permittee via first-class, registered mail, or at the
6 request and expense of the permittee via overnight delivery service.
7 The annual vehicle permit shall not be duplicated. The annual
8 vehicle permit shall be replaced only if:

- 9 a. the permittee did not receive the original permit
10 within seven (7) business days after the date of
11 issuance,
- 12 b. a request for replacement is submitted to the
13 Department of Transportation within ten (10) business
14 days after the original date of issuance of the
15 permit, and
- 16 c. the request for replacement is accompanied by a
17 notarized statement signed by a principal or officer
18 of the permittee acknowledging that the permittee
19 understands the permit may not be duplicated and that
20 if the original permit is located, the permittee shall
21 return either the original or replacement permit to
22 the Department of Transportation.

23 7. A request for replacement of an annual vehicle permit issued
24 pursuant to the provisions of this subsection shall be denied if the

1 Department of Transportation can verify that the permittee received
2 the original annual vehicle permit.

3 8. A lost, misplaced, damaged, destroyed, or otherwise unusable
4 annual vehicle permit shall be replaced for a fee of ~~Twenty-five~~
5 ~~Dollars (\$25.00)~~ Thirty-five Dollars (\$35.00).

6 SECTION 14. AMENDATORY 47 O.S. 2021, Section 14-109, as
7 amended by Section 8, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
8 Section 14-109), is amended to read as follows:

9 Section 14-109. A. On any road or highway:

10 1. No single axle weight shall exceed twenty thousand (20,000)
11 pounds; and

12 2. The total gross weight in pounds imposed thereon by a
13 vehicle or combination of vehicles shall not exceed the value
14 calculated in accordance with the Federal Bridge formula imposed by
15 23 U.S.C., Section 127.

16 B. Except as to gross limits, the formula of this section shall
17 not apply to a truck-tractor and dump semitrailer when used as a
18 combination unit. In no event shall the maximum load in pounds
19 carried by any set of tandem axles exceed thirty-four thousand
20 (34,000) pounds. Any vehicle operating with split tandem axles or
21 tri-axles shall adhere to the formula.

22 C. Except for loads moving under special permits as provided in
23 this title, no department or agency of this state or any county,
24 city, or public entity thereof shall pay for any material that

1 exceeds the legal weight limits moving in interstate or intrastate
2 commerce in excess of the legal load limits of this state.

3 D. 1. An annual special overload permit may be purchased for
4 vehicles transporting roll-off recycle metals, rock, sand, gravel,
5 coal, flour, timber, pulpwood, and chips in their natural state, oil
6 field fluids, oil field equipment or equipment used in oil and gas
7 well drilling or exploration, and vehicles transporting grain,
8 fertilizer, cottonseed, cotton, livestock, peanuts, canola,
9 sunflowers, soybeans, feed, any other raw agricultural products, and
10 any other unprocessed agricultural products, if the following
11 conditions are met:

12 a. the vehicles are registered for the maximum allowable
13 rate,

14 b. the vehicles do not exceed five percent (5%) of the
15 gross limits set forth in subsection A of this
16 section,

17 c. the vehicles do not exceed eight percent (8%) of the
18 axle limits set forth in subsection A of this section,

19 d. no component of the vehicles exceeds the
20 manufacturer's component weight rating as shown on the
21 vehicle certification label or tag, and

22 e. the vehicles operating pursuant to the provisions of
23 this paragraph will not be allowed to operate on the
24 National System of Interstate and Defense Highways.

1 2. Vehicles operating pursuant to this section must register
2 for the maximum allowable rate and additionally shall purchase a
3 nontransferable annual special overload permit from the Department
4 of Transportation for a fee of ~~Three Hundred Fifty Dollars (\$350.00)~~
5 Four Hundred Sixty Dollars (\$460.00). All monies collected shall be
6 deposited to the credit of the Highway Construction and Maintenance
7 Fund.

8 E. 1. Oversize or overweight vehicles used for specialized
9 transportation if the maximum weight does not exceed twenty-three
10 thousand (23,000) pounds on any single axle and:

11 a. is a dual lane trailer with dual lane axles and the
12 width of the transport vehicle or trailer exceeds
13 twelve (12) feet in width, or

14 b. the overall gross vehicle weight of a single trailer
15 meets or exceeds three hundred thousand (300,000)
16 pounds, originates or terminates at the Tulsa Port of
17 Catoosa, and the trip is confined within a thirty-mile
18 radius of the Port.

19 2. Permit fees for oversize or overweight vehicles used for
20 specialized transportation shall be in accordance with subsection A
21 of Section 14-116 of this title.

22 3. Vehicles operating pursuant to the provisions of this
23 paragraph will not be allowed to operate on the National System of
24 Interstate and Defense Highways.

1 F. Exceptions to this section will be:

2 1. Utility or refuse collection vehicles used by counties,
3 cities, or towns or by private companies contracted by counties,
4 cities, or towns if the following conditions are met:

5 a. calculation of weight for a utility or refuse
6 collection vehicle shall be "Gross Vehicle Weight".
7 The "Gross Vehicle Weight" of a utility or refuse
8 collection vehicle may not exceed the otherwise
9 applicable weight by more than fifteen percent (15%).

10 The weight on individual axles must not exceed the
11 manufacturer's component rating which includes axle,
12 suspension, wheels, rims, brakes, and tires as shown
13 on the vehicle certification label or tag, and

14 b. utility or refuse collection vehicles operated under
15 these exceptions will not be allowed to operate on
16 interstate highways;

17 2. A combination of a wrecker or tow vehicle and another
18 vehicle or vehicle combination if:

19 a. the service provided by the wrecker or tow vehicle is
20 needed to remove disabled, abandoned, or accident-
21 damaged vehicles, and

22 b. the wrecker or tow vehicle is towing the other vehicle
23 or vehicle combination directly to the nearest
24

1 appropriate place of repair, terminal, or vehicle
2 storage facility;

3 3. A vehicle operating pursuant to the provisions of paragraph
4 2 of this subsection shall not be allowed to operate on the National
5 System of Interstate and Defense Highways unless it is a covered
6 heavy-duty tow and recovery vehicle that:

7 a. is transporting a disabled vehicle from the place
8 where the vehicle became disabled to the nearest
9 appropriate repair facility, and

10 b. has a gross vehicle weight that is equal to or exceeds
11 the gross vehicle weight of the disabled vehicle being
12 transported; and

13 4. On the interstate highway system a vehicle designed to be
14 used under emergency conditions to transport personnel and equipment
15 and to support the suppression of fires and mitigation of other
16 hazardous situations with a vehicle weight limit up to a maximum
17 gross vehicle weight of eighty-six thousand (86,000) pounds with
18 less than:

19 a. twenty-four thousand (24,000) pounds on a single
20 steering axle,

21 b. thirty-three thousand five hundred (33,500) pounds on
22 a single drive axle,

23 c. sixty-two thousand (62,000) pounds on a tandem axle,
24 or

d. fifty-two thousand (52,000) pounds on a tandem rear drive steer axle.

G. 1. Any vehicle utilizing an auxiliary power or idle reduction technology unit in order to promote reduction of fuel use and emissions because of engine idling shall be allowed an additional four hundred (400) pounds total to the total gross weight limits set by this section.

2. To be eligible for the exception provided in this subsection, the operator of the vehicle must obtain written proof or certification of the weight of the auxiliary power or idle reduction technology unit and be able to demonstrate or certify that the idle reduction technology is fully functional.

3. Written proof or certification of the weight of the auxiliary power or idle reduction technology unit must be available to law enforcement officers if the vehicle is found in violation of applicable weight laws. The additional weight allowed cannot exceed four hundred (400) pounds or the actual proven or certified weight of the unit, whichever is less.

H. On the Interstate Highway System, a vehicle carrying fluid milk products shall be considered a load that cannot be easily dismantled or divided, or "nondivisible".

I. Utility, refuse collection vehicles or a combination of a wrecker or tow vehicle as described in paragraphs 1 and 2 of subsection F of this section operating under exceptions shall

1 purchase an annual special overload permit from the Department of
2 Transportation for ~~One Hundred Dollars (\$100.00)~~ One Hundred Thirty
3 Dollars (\$130.00). All monies collected shall be deposited to the
4 credit of the Highway Construction and Maintenance Fund.

5 SECTION 15. AMENDATORY 47 O.S. 2021, Section 14-116, as
6 last amended by Section 6, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
7 2025, Section 14-116), is amended to read as follows:

8 Section 14-116. A. The Executive Director of the Department of
9 Transportation shall charge a minimum permit fee of ~~Forty Dollars~~
10 ~~(\$40.00)~~ Fifty-five Dollars (\$55.00) for any permit issued pursuant
11 to the provisions of Section 14-101 et seq. of this title. In
12 addition to the permit fee, the Executive Director of the Department
13 of Transportation shall charge a fee of ~~Ten Dollars (\$10.00)~~ Fifteen
14 Dollars (\$15.00) for each thousand pounds in excess of the legal
15 load limit. The Executive Director of the Department of
16 Transportation shall establish any necessary rules for collecting
17 the fees.

18 B. The Department of Transportation is authorized to establish
19 an escrow account system for the payment of permit fees. Authorized
20 motor carriers meeting established credit requirements may
21 participate in the escrow account system for permits purchased from
22 all size and weight permit offices in this state. Carriers not
23 choosing to participate in the escrow account system shall be
24 required to make payment of the required fee or fees upon purchase

1 of each permit as required by law. All monies collected through the
2 escrow account system shall be deposited to a special account of the
3 Department of Transportation and placed in the custody of the State
4 Treasurer. Proceeds from permits purchased using the escrow account
5 system shall be distributed as provided for in subsection H of this
6 section. However, fees collected through such accounts for the
7 electronic transmission, transfer or delivery of permits, as
8 provided for in Section 14-118 of this title, shall be credited to
9 the Weigh Station Improvement Revolving Fund established pursuant to
10 Section 1167 of this title.

11 C. 1. Application for permits shall be made a reasonable time
12 in advance of the expected time of movement of such vehicles. For
13 emergencies affecting the health or safety of persons or a
14 community, permits may be issued for immediate movement.

15 2. Size and weight permit offices in all districts where
16 applicable shall issue permits to authorize carriers by telephone
17 during weekdays.

18 D. No overweight permit shall be valid until all license taxes
19 due the State of Oklahoma have been paid.

20 E. No permit violation shall be deemed to have occurred when an
21 oversize or overweight movement is made pursuant to a permit whose
22 stated weight or size exceeds the actual load.

23 F. Any permit issued for a truck or truck-tractor operating in
24 combination with a trailer or a semitrailer shall contain only the

1 license plate number for the truck or truck-tractor if the permittee
2 provides to the Department of Transportation a list containing the
3 license plate number, and such other information as the Department
4 of Transportation may prescribe by rule, for each trailer or
5 semitrailer which may be used for movement with the permit. When
6 the permittee provides the list described in this subsection, the
7 license plate number for any trailer or semitrailer to be moved with
8 the permit shall not be included on the permit; provided, a trailer
9 or semitrailer which is not on the list shall not be authorized to
10 be used for movement with the permit. It shall be the
11 responsibility of the permittee to ensure the list provided to the
12 Department of Transportation is maintained and updated with any
13 fleet changes. The Department of Transportation shall adopt any
14 rules deemed necessary to administer the provisions of this
15 subsection.

16 G. The first deliverer of motor vehicles designated truck
17 carriers or well service carriers manufactured in Oklahoma shall not
18 be required to purchase an overweight permit when being delivered to
19 the first purchaser.

20 H. Except as provided in Section 14-122 of this title, the
21 first One Million Two Hundred Sixteen Thousand Dollars
22 (\$1,216,000.00) of proceeds from both the permit fees and the
23 overweight permit fees imposed pursuant to subsection A of this
24 section collected monthly shall be apportioned by Service Oklahoma

1 as provided in Section 1104 of this title. For the fiscal year
2 beginning July 1, 2022, and all subsequent years, the next Two
3 Million Five Hundred Thousand Dollars (\$2,500,000.00) of proceeds
4 from both the permit fees and the overweight permit fees imposed
5 pursuant to subsection A of this section collected monthly shall be
6 remitted to the Department of Public Safety for the purpose of
7 staffing the port of entry weigh stations with Department of Public
8 Safety port of entry officers whose powers and duties shall be
9 specified by the Department of Public Safety through the
10 promulgation of rules. For the fiscal year beginning July 1, 2017,
11 and all subsequent years, all proceeds collected from both the
12 permit fees and the overweight permit fees imposed pursuant to
13 subsection A of this section in excess of Three Million Seven
14 Hundred Sixteen Thousand Dollars (\$3,716,000.00) shall be deposited
15 in the Weigh Station Improvement Revolving Fund as provided in
16 Section 1167 of this title for the purpose set forth in that section
17 and may be used for motor carrier permitting systems and motor
18 carrier safety and enforcement.

19 SECTION 16. AMENDATORY 47 O.S. 2021, Section 14-118, as
20 amended by Section 11, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
21 Section 14-118), is amended to read as follows:

22 Section 14-118. A. 1. Pursuant to such rules as may be
23 prescribed by Oklahoma agencies of jurisdiction, Oklahoma motor
24 carriers may engage in any activity in which carriers subject to the

1 jurisdiction of the federal government may be authorized by federal
2 legislation to engage. Provided further, the Transportation
3 Commission shall formulate for the State Trunk Highway System,
4 including the National System of Interstate and Defense Highways,
5 and for all other highways or portions thereof, rules governing the
6 movement of vehicles or loads which exceed the size or weight
7 limitations specified by the provisions of this chapter.

8 2. Such rules shall be the basis for the development of a
9 system by the Executive Director of the Department of Transportation
10 for the issuance of permits for the movement of oversize or
11 overweight vehicles or loads. Such system shall include, but not be
12 limited to, provisions for duration, seasonal factors, hours of the
13 day or days when valid, special requirements as to flags, flagmen
14 and warning or safety devices and other such items as may be
15 consistent with the intent of this section. The permit system shall
16 include provisions for the collection of permit fees as well as for
17 the issuance of the permits by telephone, electronic transfer or
18 such other methods of issuance as may be deemed feasible.

19 3. The Department of Transportation is authorized to charge a
20 fee of ~~Two Dollars (\$2.00)~~ Three Dollars (\$3.00) for each permit
21 requested to be issued by facsimile machine or by any other means of
22 electronic transmission, transfer or delivery. The fee shall be in
23 addition to any other fee or fees assessed for the permit. The fee
24 shall be deposited in the State Treasury to the credit of the

1 Department of Transportation and the monies shall be expended by the
2 Department of Transportation solely for the purposes provided for in
3 this chapter.

4 4. It is the purpose of this section to permit the movement of
5 necessary overweight and oversize vehicles or loads consistent with
6 the following obligations:

7 a. protection of the motoring public from potential
8 traffic hazards,

9 b. protection of highway surfaces, structures, and
10 private property, and

11 c. provision for normal flow of traffic with a minimum of
12 interference.

13 B. The Transportation Commission shall prepare and publish a
14 map of this state showing by appropriate symbols the various highway
15 structures and bridges in terms of maximum size and weight
16 restrictions. This map shall be titled "Oklahoma Load Limit Map"
17 and shall be revised periodically to maintain a reasonably current
18 status and in no event shall a period of two (2) years lapse between
19 revisions and publication of the printed version of the Oklahoma
20 Load Limit Map. This map shall also be made available by the
21 Department of Transportation on the Internet, and in no event shall
22 a period of six (6) months lapse between revisions of the
23 information provided on the Internet. Provided, further, the
24 Secretary of the Department of Transportation shall prepare and

1 publish a map of this state showing the advantages of this state as
2 a marketing, warehousing and distribution network center for motor
3 transportation sensitive industries.

4 C. The Executive Director of the Department of Transportation,
5 or an authorized representative, shall have the authority, within
6 the limitations formulated under provisions of this chapter, to
7 issue, withhold or revoke special permits for the operation of
8 vehicles or combinations of vehicles or loads which exceed the size
9 or weight limitations of this chapter. Every such permit shall be
10 carried in the vehicle or combination of vehicles to which it refers
11 and shall be open to inspection by any law enforcement officer or
12 authorized agent of any authority granting such permit, and no
13 person shall violate any of the terms or conditions of such special
14 permit.

15 D. It shall be permissible in the transportation of empty
16 trucks on any road or highway to tow by use of saddlemounts, i.e.,
17 mounting the front wheels of one vehicle on the bed of another
18 leaving the rear wheels only of such towed vehicle in contact with
19 the roadway. One vehicle may be fullmounted on the towing or towed
20 vehicles engaged in any driveaway or towaway operation. No more
21 than three saddlemounts may be permitted in such combinations. The
22 towed vehicles shall be securely fastened and operated under the
23 applicable safety requirements of the United States Department of
24 Transportation and such combinations shall not exceed an overall

1 length of seventy-five (75) feet. Provided, a driveaway saddlemount
2 with fullmount vehicle transporter combination may reach an overall
3 length of ninety-seven (97) feet on the National Network of
4 Highways.

5 E. The Executive Director of the Department of Transportation,
6 upon application of any person engaged in the transportation of
7 forest products in the raw state, which is defined to be tree-length
8 logs moving from the forest directly to the mill, or upon
9 application of any person engaged in the hauling for hire or for
10 resale of round baled hay with a total outside width of eleven (11)
11 feet or less, shall issue an annual permit, upon payment of a fee of
12 ~~Twenty-five Dollars (\$25.00)~~ Thirty-five Dollars (\$35.00) each year,
13 authorizing the operation by such persons of such motor vehicle load
14 lengths and widths upon the highways of this state except on the
15 National System of Interstate and Defense Highways. Provided,
16 however, the restriction on use of the National System of Interstate
17 and Defense Highways shall not be applicable to persons engaged in
18 the hauling of round baled hay with a total outside width of eleven
19 (11) feet or less.

20 F. The Executive Director of the Department of Transportation,
21 upon application of any person engaged in the transportation of
22 overwidth or overheight equipment used in soil conservation work
23 with a total outside width of twelve (12) feet or less, shall issue
24 an annual permit, upon payment of a fee of ~~Twenty-five Dollars~~

1 ~~(\$25.00)~~ Thirty-five Dollars (\$35.00) each year, authorizing the
2 operation by such persons of such motor vehicle load lengths and
3 widths upon the highways of this state except on the National System
4 of Interstate and Defense Highways.

5 G. Farm equipment including, but not limited to, implements of
6 husbandry as defined in Section 1-125 of this title shall be
7 exempted from the requirement for special permits due to size. Such
8 equipment may move on any highway, except those highways which are
9 part of the National System of Interstate and Defense Highways,
10 during the hours of darkness and shall be subject to the
11 requirements as provided in Section 12-215 of this title. In
12 addition to those requirements, tractors pulling machinery over
13 thirteen (13) feet wide must have two amber flashing warning lamps
14 symmetrically mounted, laterally and widely spaced as practicable,
15 visible from both front and rear, mounted at least thirty-nine (39)
16 inches high.

17 H. Any rubber-tired road construction vehicle including rubber-
18 tired truck cranes and special mobilized machinery either self-
19 propelled or drawn carrying no load other than component parts
20 safely secured to the machinery and its own weight, but which is
21 overweight by any provisions of this chapter, shall be authorized to
22 move on the highways of this state. Movement of such vehicles shall
23 be authorized on the National System of Interstate and Defense
24 Highways only by special permit secured from the Executive Director

1 of the Department of Transportation or an authorized representative
2 upon determination that the objectives of this section will be
3 served by such a permit and that federal weight restrictions will
4 not be violated. The special permit shall be:

5 1. A single-trip permit issued under the provisions of this
6 section and Section 14-116 of this title; or

7 2. A special annual overweight permit which shall be issued for
8 one calendar year period upon payment of a fee of ~~Sixty Dollars~~
9 ~~(\$60.00)~~ Eighty-five Dollars (\$85.00).

10 The weight of any such vehicle shall not exceed six hundred
11 fifty (650) pounds multiplied by the nominal width of the tire. The
12 vehicle shall be required to carry the safety equipment adjudged
13 necessary for the health and welfare of the driving public. If any
14 oversized vehicle does not come under the other limitations of the
15 present laws, it shall be deemed that the same shall travel only
16 between the hours of sunrise and sunset. The vehicle, being
17 overweight but of legal dimension, shall be allowed continuous
18 travel. The vehicles, except special mobilized machinery, shall be
19 exempt from the laws of this state relating to motor vehicle
20 registration, licensing or other fees or taxes in lieu of ad valorem
21 taxes.

22 I. 1. When such machinery has a width greater than eight and
23 one-half (8 1/2) feet, or a length, exclusive of load, of forty-five
24 (45) feet, or a height in excess of thirteen and one-half (13 1/2)

1 feet, then the permit may restrict movement to a fifty-mile radius
2 from an established operating base, and may designate highways to be
3 traveled, hours of travel and when flagmen may be required to
4 precede or follow the equipment.

5 2. Possession of a permit shall in no way be construed as
6 exempting such equipment from the authority of the Executive
7 Director of the Department of Transportation to restrict use of
8 particular highways, nor shall it exempt owners or operators of such
9 equipment from the responsibility for damage to highways caused by
10 movement of the equipment. Nothing in this subsection shall apply
11 to machinery used in highway construction or road material
12 production.

13 3. Upon the issuance of a special mobilized machinery driveway
14 permit as provided in this subsection, special mobilized machinery
15 manufactured in Oklahoma shall be permitted to move upon the
16 highways of this state from the place of manufacture to the state
17 line for delivery and exclusive use outside the state, and may be
18 temporarily returned to Oklahoma for modification and repair, with
19 subsequent movement back out of the state. Special driveway
20 permits for such movements shall be issued by the Executive Director
21 of the Department of Transportation, who may act through designated
22 agents, upon the payment of a fee in the amount of ~~Fifteen Dollars~~
23 ~~(\$15.00)~~ Twenty Dollars (\$20.00) for each movement.

1 4. The size of the special mobilized machinery shall not be
2 such as to create a safety hazard in the judgment of the Executive
3 Director of the Department of Transportation. Permits for such
4 special mobilized machinery shall specify a maximum permissible road
5 speed of sixty (60) miles per hour, designate safety equipment to be
6 carried and may exclude use of highways of the interstate system.

7 5. When such equipment has a width greater than eight and one-
8 half (8 1/2) feet, or a length exclusive of load of forty-five (45)
9 feet, or a height in excess of thirteen and one-half (13 1/2) feet,
10 the permit may designate highways to be traveled, hours of travel
11 and when flagmen may be required to precede or follow the equipment.

12 6. Possession of a special driveway permit shall in no way be
13 construed as exempting such equipment from the authority of the
14 Executive Director of the Department of Transportation to restrict
15 use of particular highways, nor shall it exempt the owners or
16 operators of such equipment from the responsibility for damage to
17 highways caused by the movement of such equipment.

18 SECTION 17. AMENDATORY 47 O.S. 2021, Section 14-120, as
19 amended by Section 13, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
20 Section 14-120), is amended to read as follows:

21 Section 14-120 A. Manufactured items, with the exception of
22 manufactured homes as defined in Section 1102 of this title and
23 industrialized housing as described in subsection B of Section 14-
24

1 103A of this title, exceeding sixteen (16) feet but not exceeding
2 twenty-three (23) feet in width traveling:

3 1. From a point of manufacture in this state to a point of
4 delivery in this state or to a point of delivery in another state;
5 or

6 2. From a point of manufacture outside this state to a point of
7 delivery in this state or to a point of delivery in another state
8 shall be permitted, upon receipt of a special movement permit issued
9 under the provisions of subsection B of this section, to travel on
10 any state or U.S. highway in Oklahoma. Provided, however, the
11 Executive Director of the Department of Transportation is authorized
12 to allow such items in excess of twenty-three (23) feet in width to
13 travel on such highway if it is in the best interest of the state
14 and a special moving permit has been issued. Provided, further,
15 that no such load in excess of the limitations set forth in the
16 applicable United States Code shall be permitted to travel upon any
17 portion of the National System of Interstate and Defense Highways.

18 B. Every person desiring to transport manufactured items
19 pursuant to the provisions of this section shall apply to the
20 Department of Transportation for a special movement permit on an
21 application form prescribed by the Department. Upon approval of the
22 application by the Department of Transportation, a special movement
23 permit shall be issued for a fee of ~~Five Hundred Dollars (\$500.00)~~
24 Seven Hundred Fifteen Dollars (\$715.00). Except as provided in

1 Section 14-122 of this title, monies received from such special
2 movement permit fees shall be deposited in the State Treasury to the
3 credit of the General Revenue Fund. A permit issued pursuant to the
4 provisions of this subsection shall expire upon the completion of
5 one trip specified in subsection A of this section. The special
6 movement permit, and fee related thereto, shall be in addition to
7 the permit and fees required by Section 14-116 of this title.

8 C. Highway escorts shall be required for transportation of
9 items pursuant to the provisions of this section according to rules
10 and regulations prescribed by the Department of Transportation.

11 SECTION 18. AMENDATORY 47 O.S. 2021, Section 14-121, as
12 amended by Section 16, Chapter 116, O.S.L. 2022 (47 O.S. Supp. 2025,
13 Section 14-121), is amended to read as follows:

14 Section 14-121. A. No person shall operate a special
15 combination vehicle within this state without a special combination
16 vehicle permit for the vehicle issued by the Department of
17 Transportation. Such permit may be issued for operation upon
18 Federal Aid Interstate Highways or four-lane divided Federal Aid
19 Primary Highways and for access or egress between points of origin
20 or destination.

21 B. The Executive Director of the Department of Transportation
22 shall promulgate rules for the issuance of special combination
23 vehicle permits and shall collect an annual fee of ~~Two Hundred Forty~~
24 ~~Dollars (\$240.00)~~ Three Hundred Forty-five Dollars (\$345.00) for

1 each such permit issued. Except as provided in Section 14-122 of
2 this title, fees collected pursuant to this section shall be
3 remitted to the State Treasurer to be credited to the General
4 Revenue Fund in the State Treasury.

5 C. For the purposes of this section, a special combination
6 vehicle shall consist of a truck-tractor semitrailer combination
7 towing two complete trailers or semitrailers. No semitrailer or
8 trailer used in such a combination shall have a length greater than
9 twenty-nine (29) feet nor shall a special combination vehicle exceed
10 the weight limitations imposed by Sections 14-109 and 14-116 of this
11 title.

12 SECTION 19. AMENDATORY 69 O.S. 2021, Section 1521, as
13 amended by Section 1, Chapter 460, O.S.L. 2025 (69 O.S. Supp. 2025,
14 Section 1521), is amended to read as follows:

15 Section 1521. A. There is hereby created in the State Treasury
16 a fund to be known as the "Rebuilding Oklahoma Access and Driver
17 Safety Fund". The fund shall be a continuing fund, not subject to
18 fiscal year limitations, and shall consist of all appropriations and
19 transfers made by the Legislature. All monies accruing to the
20 credit of the fund are hereby appropriated and may be budgeted and
21 expended by the Department of Transportation for the purposes
22 authorized by subsection D of this section in amounts as authorized
23 by the Oklahoma Legislature. Expenditures from the fund shall be
24 made upon warrants issued by the State Treasurer against claims

1 filed as prescribed by law with the Director of the Office of
2 Management and Enterprise Services for approval and payment.

3 B. Beginning July 1, 2021, except for an amount equivalent to
4 the amount of revenue apportioned to the Rebuilding Oklahoma Access
5 and Driver Safety Fund pursuant to Section 500.4B of Title 68 and
6 Section 1104 of Title 47 of the Oklahoma Statutes and from other
7 sources apportioned to the Fund by law, there shall be apportioned
8 to the funds specified in this subsection from the monies that would
9 otherwise be apportioned to the General Revenue Fund by Section 2352
10 of Title 68 of the Oklahoma Statutes from the revenues derived
11 pursuant to subsections A, B and E of Section 2355 of Title 68 of
12 the Oklahoma Statutes amounts as follows:

13 1. Subject to any reductions required by subsection C of this
14 section, there shall be apportioned to the Rebuilding Oklahoma
15 Access and Driver Safety Fund:

16 a. for the fiscal year beginning July 1, 2021, and for
17 each fiscal year thereafter, Eighty Million Dollars
18 (\$80,000,000.00), which shall be allocated and used by
19 the Department of Transportation first for the purpose
20 of making any required payments for principal,
21 interest or other costs of borrowing with respect to
22 the obligations issued pursuant to Section 341 of
23 Title 73 of the Oklahoma Statutes and after any such
24

1 required payment has been made then for the purposes
2 otherwise authorized by this section, plus

3 b. the total amount apportioned to the Rebuilding
4 Oklahoma Access and Driver Safety Fund for the
5 preceding fiscal year which, except for the amount
6 prescribed by subparagraph a of this paragraph, shall
7 be apportioned before any other amount is apportioned
8 pursuant to Section 2352 of Title 68 of the Oklahoma
9 Statutes, plus

10 c. an additional amount that is required in order for the
11 total apportionment to the Rebuilding Oklahoma Access
12 and Driver Safety Fund from all sources for such
13 fiscal year to equal:

14 (1) Five Hundred Seventy-five Million Dollars
15 (\$575,000,000.00) for the fiscal year beginning
16 July 1, 2021,

17 (2) Five Hundred Ninety Million Dollars
18 (\$590,000,000.00) for the fiscal year beginning
19 July 1, 2022, and

20 (3) Six Hundred Ten Million Dollars (\$610,000,000.00)
21 for the fiscal year beginning July 1, 2025, and
22 for each fiscal year thereafter.

23 All amounts apportioned pursuant to this paragraph shall be
24 divided into twelve equal amounts to be apportioned each month

1 during the fiscal year except the amount specified in subparagraph a
2 of this paragraph which amount shall be allocated in its full amount
3 in cash not later than July 30 each year or such later date as may
4 be required in order for the amount to be allocated in cash; and

5 2. For each fiscal year after the apportionments required by
6 paragraph 1 of this subsection have been made:

7 a. the next Two Million Dollars (\$2,000,000.00) shall be
8 apportioned to the Oklahoma Tourism and Passenger Rail
9 Revolving Fund created pursuant to Section 325 of
10 Title 66 of the Oklahoma Statutes to be used for
11 capital and operating costs for the "Heartland Flyer"
12 rail project, and

13 b. the next Three Million Dollars (\$3,000,000.00) shall
14 be apportioned to the Public Transit Revolving Fund
15 created pursuant to Section 4031 of this title to be
16 used for purposes authorized by law other than the
17 purpose described by subparagraph a of this paragraph.

18 All amounts apportioned pursuant to this paragraph shall be
19 divided into twelve equal amounts to be apportioned each month
20 during the fiscal year.

21 C. In the event that the Director of the Office of Management
22 and Enterprise Services declares a General Revenue Fund revenue
23 failure pursuant to Section 34.49 of Title 62 of the Oklahoma
24 Statutes, and agency allocations are reduced pursuant to the

1 provisions of Section 34.49 of Title 62 of the Oklahoma Statutes,
2 the amounts that would otherwise be apportioned to the ROADS Fund
3 by:

4 1. Subparagraph a of paragraph 1 of subsection B of this
5 section, only to the extent that the amount is not required for debt
6 service related to the obligations authorized pursuant to Section
7 341 of Title 73 of the Oklahoma Statutes, Section 350 of Title 73 of
8 the Oklahoma Statutes and Section 1 of Enrolled House Bill No. 2896
9 of the 1st Session of the 58th Oklahoma Legislature;

10 2. Subparagraphs b and c of paragraph 1 of subsection B of this
11 section; and

12 3. Subparagraphs a and b of paragraph 2 of subsection B of this
13 section,
14 shall be reduced by a percentage equal to that required of the
15 General Revenue Fund appropriations to state agencies and such
16 reductions shall occur during the entire fiscal year and for any
17 month during which such reductions are required by the Office of
18 Management and Enterprise Services and by the same percentage as
19 that required of the agencies for such General Revenue Fund
20 appropriations.

21 D. The Department of Transportation shall use the monies in the
22 Rebuilding Oklahoma Access and Driver Safety Fund for:

23 1. The construction and maintenance of state roads, bridges and
24 highways;

1 2. The direct expenses of operating and maintaining the state
2 highway system, including bridges;

3 3. Direct expenses incurred in constructing, repairing, and
4 maintaining state highways, farm-to-market roads, county highways
5 and bridges as authorized by law;

6 4. Matching federal funds;

7 5. The purchase of materials, tools, machinery, motor vehicles,
8 and equipment necessary or convenient for the construction and
9 maintenance of the state highway system and bridges;

10 6. Debt service incurred prior to January 1, 2006, for Capital
11 Improvement Program bonds sold pursuant to Section 2001 of this
12 title; and

13 7. Debt service incurred on or after July 1, 2009, with respect
14 to obligations authorized to be issued pursuant to Section 341 of
15 Title 73 of the Oklahoma Statutes, Section 350 of Title 73 of the
16 Oklahoma Statutes and Section 1 of Enrolled House Bill No. 2896 of
17 the 1st Session of the 58th Oklahoma Legislature; ~~and~~

18 ~~8. For fiscal years beginning on or after July 1, 2025, and~~
19 ~~ending on or prior to June 30, 2033, Twenty Million Dollars~~
20 ~~(\$20,000,000.00) per fiscal year for the construction, repair, and~~
21 ~~maintenance of weigh stations on the state highway system.~~

22 E. From the monies allocated pursuant to the provisions of
23 subparagraph a of paragraph 1 of subsection B of this section each
24 fiscal year, the Department of Transportation shall make payments

1 required for the payment of principal, interest and other costs
2 related to the obligations issued by the Oklahoma Capitol
3 Improvement Authority as authorized by Section 341 of Title 73 of
4 the Oklahoma Statutes, Section 350 of Title 73 of the Oklahoma
5 Statutes and Section 1 of Enrolled House Bill No. 2896 of the 1st
6 Session of the 58th Oklahoma Legislature, and such payments shall be
7 made by the Department each fiscal year before such monies are used
8 for any other purpose.

9 SECTION 20. This act shall become effective November 1, 2026.

10 Passed the House of Representatives the 26th day of March, 2026.

11

12

Presiding Officer of the House
of Representatives

13

14

15 Passed the Senate the _____ day of _____, 2026.

16

17

Presiding Officer of the Senate

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